Baxley v. Turner Construction Company

CTS LoneStar Joint Venture, Google Haskell Data Center Project

Supporting Documentation: Cover Memo and Exhibit Index

Prepared by Garrett Baxley for Rob Wiley P.C. | Matter Baxley-AG-10834-26 | August 11, 2026 — revised edition of the August 6 index, with verification notes

Start here

The short version. I am Garrett Baxley. Turner Construction Company hired me on October 6, 2025 as an HR Manager and assigned me to the CTS LoneStar joint venture on the Google Haskell data center project in Texas. Turner terminated me on May 19, 2026, seven months and thirteen days later. I disclosed autism, depression and anxiety to my supervisor in the car in January and in writing on January 26, again in writing on February 17, and to the man who signed my termination letter in person in March. A verbal final warning came ten days after the February 17 transmittal and was never put in writing. The termination letter states no reason at all. Every reason Turner has given since has been given in a different document and has been different each time. I am 32, so nothing in this file turns on age.

The theory of the case, in one paragraph. Turner ran a program that asked me to write down how I work. I wrote that ambiguity and communication are where I struggle and asked for direct, rigorous coaching. Turner then fired me on grounds that describe a communication failure and a failure to intuit expectations that were never stated, and on an availability indicator on a man whose insomnia has been in his medical chart since June 19, 2024, fifteen months before Turner hired me. I am not arguing that a disability excuses conduct, because the Fifth Circuit has answered that argument and I would lose it. I am arguing something narrower and better supported. The availability ground was never tied to any task I could not perform. It was tied to the impairment itself, which is the distinction on which Nall v. BNSF reversed summary judgment for the employer. And the ambiguity Turner fired me over appears to be ambiguity Turner documented in its own meeting notes five days earlier and assigned two named executives to fix. I say appears because that row, B-22, comes from the search of my mailbox on my last day rather than from notes I have read, and it has to be confirmed against Turner's production before anyone relies on it. Section H sets out the authority.

What is actually urgent. The charge is not filed. The February 27 warning carries a 180-day state window that closes around August 26, which is twenty days out, and that is the earliest fuse I actually believe in. The federal charge window is 300 days, which puts February 27 at about December 24, 2026 and May 19 at about March 15, 2027, so filing now protects everything backward through the open windows without reviving anything already closed. May 19 alone runs to November 15. The full arithmetic, including the February 9 question I do not think is a discrete act, is in Section H under Clocks.

The four decisions I need from you, in the order I need them. One, whether the charge names CTS LoneStar and the member firms alongside Turner. Sections B-27, B-32 and B-35 feed that, and the members are Clayco, Source Building Group and TW Constructors. Two, how the disability is described,

given that my treating physician documents bipolar disorder, ADHD, anxiety, depression and insomnia back to June 2024, while my autism identification is my own and no clinician has evaluated me for it. Three, whether we answer in writing Turner's statement, made twice on July 24, that I do not contest the after-acquired cap, because I do contest it. Four, whether the four defects I found on the face of the July 7 draft charge were fixed in the July 31 version, which D-12 lists.

What I am not able to hand you, and one thing I am handing you before you ask. I lost my Turner mailbox the day I was terminated, so eight items in Sections B and C are things I can describe but cannot produce. B-37 is the dated, header-bearing record of what a search of that mailbox returned on May 19, and it is the provenance for all eight. Separately, D-13 notes a custody matter that I have disclosed to you in full in a separate privileged communication rather than in this index, and Section G closes with a Turner-internal thread carrying a privilege marking that I have quarantined and not opened.

If you only have twenty minutes. Read Section C first. It is six exhibits and it is the spine of the case: the February 9 reset, the April 9 escalation, the April 20 email to the man who signed my letter, the May 4 memo and the reply promising a conversation that never happened, the June 2 escalation to the CEO, and the June 5 review that put Turner's first written reason on paper seventeen days after it fired me. Then read Section A, which is the disclosure record you asked for. Then read the Clocks and the damages paragraphs in Section H. Section B is the largest section and it answers a defense Turner has not formally made yet, so it can wait.

Who is who

Names appear throughout without titles, so they are collected here once.

Corina Murguia. My direct supervisor. The January in-car disclosure at A-2, the January 27 call at A-5, the edited praise message at B-3, and the April 30 intake she took over at B-36.

Jeff Dolan. Signed my termination letter. Delivered the February 27 verbal final warning by phone. The March in-person disclosure at A-9 was to him. His supportive texts are at A-6, E-1, E-4 and E-6. Turner has not yet named its decision-maker; if it is him, the no-knowledge position at Section H item Three is answered on the face of his own writings.

Kevin Ward. Senior HR leadership. Recipient of the April 20 escalation at C-3 and the May 4 memo at C-4, and author of the reply promising a conversation and a site visit that never happened.

Rodney Pope. Senior Vice President of Employee Relations. Author of the June 5 review outcome email at C-6, which is Turner's first written statement of any ground.

Jill Lause. HR Manager reporting directly to Corina Murguia. Authored the Owner's Manual template that is the basis of A-1, received my disclosure on the March drive, and was roughly ten feet away for the Dolan conversation at A-9. She is Turner's witness, not mine.

Jordyn Waters. The HR coordinator I worked with on site. Appears at B-5, B-21, B-23, B-26 and B-30.

Peter Davoren. Chief Executive Officer. Replied to my June 2 escalation in about thirty minutes, at C-5.

Tracy Hagen. Regional HR Director. Praised my work by name six days before the termination, at B-6.

Steph Curran. National HR Director. Addressed the April ER coordination to me directly, at B-12.

Tara Ebner. Director of Human Resources, TW Constructors, a JV member firm. Worked a cross-member removal through me in my final week, at B-35, and completed my own compliance control, at B-32.

Brandon Goings. On-site EHS Director. Received my February 28 disclosure and sent the counselor referral, at A-8.

Joe Glowacki. The executive the negative engagement framing was attributed to, who contradicted it in writing, at B-1 and E-7.

Jake Overman. My prior manager. The December 2025 coaching decision at D-5 and the April 9 escalation at C-2.

Andy Tandon and Paul Rooney. The project executives who never answered my green-light request at B-25.

Alex Willis. Built the interim compliance control with me, at B-18 and B-25.

Dan and Amber Blanton. Witnesses to the iCloud sign-in instruction. Dan also brought me the April 30 concern at B-36 and was reassigned afterward.

Rayne. My partner. The contemporaneous February 27 and 28 texts at A-11, E-2 and E-3.

Areyana N. Gilbert. My counsel, Rob Wiley P.C.

Jason Pruzansky. Turner's outside counsel, Davis+Gilbert LLP, New York. Author of the July 24 letter at D-9.

Purpose

Purpose. This packet responds to the firm's request for documentation of my disability disclosure and accommodation requests, and it backs up each point in my August letter. Section A alone answers the firm's specific request. The remaining sections organize the documents behind the pretext, retaliation, device, and damages issues so they can be reviewed quickly before our call. Most items here are documents I hold today, and where one is a testimony item or a capture step the row says so. One category needs naming up front. When Turner terminated me on May 19 I lost access to my Turner mailbox the same day, so eight items in Sections B and C, specifically B-21, B-22, B-23, B-29, B-33, B-35, C-2, and C-3, are things I can describe precisely but cannot hand you. A few items in Sections A and D are held by your office, still to be captured, or still on request. Every one of those rows says so in its own line. What I have for them is my own account plus the search I ran against my own mailbox on May 19 while I still had access, preserved that day in a self-email with headers at B-37, and for two of them, plus one reply, an Outlook identifier a preservation demand can name. Getting them is the reason preservation matters more than anything else on the Section G list. For everything else, native files, meaning original emails, message exports, and file metadata, come to you on request.

What changed since August 4. The exhibit count went from forty to eighty, counting D-13, which was added when I disclosed it, mostly because I now hold Turner's June 5 review email, the unsigned release, the full arbitration agreement, my final pay stubs and my treatment records. Turner's counsel wrote to you on July 24 and took a set of positions that documents in this file can test, and Section H works through

them one at a time. I corrected my own account of the March disclosure in Omaha, so the version in your hands is the one I can hold under oath. And the 120-day contractual deadline my earlier notes carried does not exist; the full agreement contains no limitation window of any kind, so every live deadline is statutory.

Four decisions are yours. Whether the charge names CTS LoneStar and the member firms alongside Turner. How the disability is described, because my autism identification is my own and no clinician has evaluated me for it, while my treating physician has documented bipolar disorder, ADHD, anxiety, depression and insomnia since June 2024. Whether we answer in writing Turner's statement, made twice on July 24, that I do not contest the after-acquired evidence cap, because I do contest it and I would rather correct it before it turns up in a position statement. And four errors on the face of the July 7 draft charge, including a latest-date box reading January 1, 2026, which is earlier than every act this charge relies on.

Two things you should hear from me first. Eight items in Sections B and C are things I can describe but cannot hand you, because I lost my Turner mailbox the day I was terminated; B-37 explains exactly what I do have for them and what it is worth. And while I was employed, in my HR role, I was a recipient on a Turner-internal thread carrying an attorney-client privilege marking. I have not opened it since, used it, or described it. I am telling you it exists because the handling is yours and opposing counsel's to decide, not mine.

Why I am not waiting. The charge is not filed and that is the reason I am not waiting. If the February 9 message is charged as its own act, that window closes around August 8, although I do not think February 9 is a discrete act, for the reason Section H gives, so on my own reading the real earliest fuse is the February 27 warning on August 26. April 9 runs to October 6 and May 19 runs to November 15. I am ready to notarize the day you tell me the form is right, and everything I hold uploads within a day of your asking.

A. Disclosure and Accommodation Record

A-1 GB Owner's Manual (.docx) with file metadata

Feb 16, 2026

My written disability disclosure ("we discussed that I am on the spectrum") and a direct request for rigorous coaching, prepared on Turner's own program template. The file's internal metadata names Jill Lause as Creator, which is the template author, and Baxley, Garrett - (TEXAS) as last modified by, so the template's Turner origin is on the document itself. The line refers back to the January conversation with Corina Murguia at A-2, where I named autism, depression, and anxiety together. What I told Corina Murguia at A-2 and Jill Lause at A-9 named the same set. This manual is the written record of that January conversation, in the words I used out loud. The March conversation with Jeff Dolan at A-9 described how my mind works instead of naming conditions, which is what Chevron Phillips permits. EEOC v. Chevron Phillips Chemical Co., 570 F.3d 606, 621 (5th Cir. 2009). File metadata shows it was finalized Feb 16, 2026 at 4:01 PM CT by my Turner account. Finalized eleven days before the Feb 27 warning and sent to Corina Murguia on or about Feb 17, ten days before it. What this document actually disclosed matters as much as when. Turner's template asked about communication style, conflict style, motivations, and triggers, which is Turner defining the subject. What I wrote back named a specific functional limitation, that ambiguity and indirect communication are where I struggle, and made a specific request, rigorous and direct coaching.

On what that means as an adjustment rather than a preference, because that is the line Taylor draws: the limitation is on communicating and concentrating, both named major life activities in 42 U.S.C. section 12102(2)(A), and the adjustments that follow from it are expectations stated in writing before a meeting rather than after, an agenda circulated in advance, and direct rather than implied correction. Those are concrete and testable, and they are what an interactive process would have produced in one conversation. That combination is what the Fifth Circuit requires and what employers usually defeat these claims on. In Mueck v. La Grange Acquisitions, L.P., 75 F.4th 469 (5th Cir. 2023) the employee lost because his disclosure was oral, brief, incidental to another conversation, named no limitation and asked for nothing. Mine was written, on the company's own instrument, named the limitation, and asked for something. Every reason Mueck failed is a reason this did not.

A-2 January in-person disclosure to Corina Murguia

Jan 2026

Disclosure of autism, depression, and anxiety, made in person in the car on the drive back from the project site to Abilene during her January visit. The next day she flew to Kansas City and called me, crying, saying her son deals with the same things and that scares her, and that if I needed anything I should let her know. Testimony item; the date is fixable through her travel and expense records for the Kansas City flight, my carrier’s call-detail records for her call the next day, and site and calendar records for the drive.

> **Verification note, August 11.** One thing should not get lost in the tidiness of the three-condition phrasing this index uses. My own June 3 working record, written before this index existed, describes the verbal disclosures as depression, anxiety, and suicidality to Corina, and neurodivergence to Jeff. The oral conversations were broader than the three conditions the written documents carry, and the sleep condition was known on site as well. I am not writing out the full composition of any oral disclosure here, for the same reason A-5 gives: those are mine to state spoken, with counsel, before anything is sworn. The point of this note is that the written trio is the floor of what was disclosed, not the ceiling, and the June 3 record is the contemporaneous anchor for that. My medical documentation carries the fuller set as well, including the ideation history, and I want the complete treating records pulled, not just the portal summary described at A-13, before the charge is finalized, so the documented set is established from the records themselves rather than from my characterization of them. And one instruction on emphasis: the discussion so far has centered autism. Autism belongs in this case, and my understanding is that a clinical evaluation is not a prerequisite for the ADA; whether that is right is yours to answer, not mine to assume. What I am asking is that all of the conditions be carried together, not autism alone.

A-3 Lyra EAP email, 6:04 PM (turner.lyrahealth.com)

Feb 16, 2026

My first outreach to Turner’s EAP, made the same day the Owner’s Manual was finalized. The manual metadata shows 4:01 PM. I registered with Lyra at 5:42 PM, one hour and forty-one minutes later, and the welcome email landed at 5:44 PM. At 6:01 PM Lyra wrote, "We understand you’ve been feeling some

difficult emotions lately, and we're glad you've taken the first step toward feeling better." At 6:04 PM a care navigator named Autumn wrote, "It sounds like you're going through a tough time right now, and I'm glad you reached out." The manual went to Corina the next day, which is B-33.

A-4 Lyra emails, 6:37 PM and 7:29 PM

Feb 16, 2026

Care escalated the same evening. By 6:37 PM a care navigator had spoken with me by phone and written, "Thanks so much for taking the time to speak with me today about your care. I've identified several highly-skilled providers with expertise to support your specific care needs." At 6:40 PM Lyra confirmed a session booked with Ronelle Boyd for Monday, February 23 at 11:00 AM. At 6:44 PM I wrote back that a different provider I had tried to book, Dr. Melissa Kwak, showed unavailable, and a second navigator confirmed at 6:54 PM that Dr. Kwak was booked and not accepting new patients. At 7:13 PM Lyra confirmed a second booking with Dr. Stacy Waneka for March 10, which is A-15, and at 7:29 PM a third navigator wrote to confirm the February 23 appointment. Three care navigators and Lyra's automated system all touched this inside one evening, and every message carries the vendor's own timestamp.

A-5 Call with Corina (my contemporaneous account)

Jan 27, 2026

Corina raised the topic of depression and asked what I needed, and I answered her. What I said in that call is the single most important thing I have to get right, and I am not writing it out here because I do not want a written approximation of it to become the version I am cross-examined on later. Ask me on the call and I will give it to you spoken, in my own words, and you will have it before anything is filed. On the date, and I am correcting my own earlier account on purpose. An earlier reconstruction in my working file put this call on February 18. That is wrong and I am not going to let a wrong date stand because it was written down first. The written disclosure went to her by email on January 26, 2026 and she called me the next day. The date does not rest on my memory. The email carries its own header and the inbound call is in a carrier record, and both of those were fixed months before this document existed. Section G lists the email itself. Testimony item; corroboration through her records in discovery.

A-6 Jeff Dolan text messages

Feb 23 and Mar 21, 2026

The person who signed the termination letter, in writing: "doing great things for us under a difficult situation... stay positive" (Feb 23), "Did you get any rest last night?" (Mar 21), telling me to call if I needed to talk, and relaying that Corina and Sydney wanted to make sure I was okay. Those are the messages of a man who could see I was struggling, and what he actually knew is a question his own texts and his own testimony will answer.

A-7 Lyra crisis-call summary email, 2:15 PM

Feb 28, 2026

The day after the verbal final warning. A care navigator walked me through crisis coping skills and crisis lines and booked me with a psychiatric provider. A dated third-party record of that week.

A-8 Text thread with Brandon Goings, on-site EHS Director (Turner/CTS), and the BuildWell follow-up

Feb 28, 2026

I asked: "Do we have an on-site mental health counsel or coach? Having an episode and struggling really bad." Goings replied "Yes. Will get the info asap" and sent the BuildWell Health contact, David Peightal. My message says the panic attack began at 5 PM the prior day. That day was Feb 27, the day of the warning. A Turner employee received the disclosure and confirmed the resource, and the BuildWell call from Peightal followed. Goings holds the other side of this thread on a Turner device; my call log and carrier records will corroborate the callback, and BuildWell holds its own notes.

A-9 In-person disclosure to Jeff Dolan, HRM Bootcamp

Mar 10-12, 2026

Eleven to thirteen days after the Feb 27 warning, which was never provided to me in writing. The order of what happened on that trip matters more than any single piece of it. First, I apologized. In person, in the room, to what I believe was the same roughly ten people from the February 27 HR team meeting, and Section G asks for both rosters so that belief gets checked against Turner's records rather than my memory. Nobody made me do it and nobody supervised it. When I was finished I went to Jeff Dolan and told him I was sorry I had put him in that position. He teared up, hugged me, and told me how proud of me he was. And then, in that moment, I told him my brain works differently and asked whether now he could help me bridge the gap. On when and where, and I am correcting my own first account of this because I want the record to be the one I can hold under oath. This happened after the training session and before the group went to the restaurant. It was not at the end of the night. My bag had gone in Mr. Dolan's vehicle and I did collect it later, but that was a separate moment and it is not when we talked. Jill Lause was about ten feet away. She may have been mid-conversation with someone at the time, so whether she heard the words or saw the exchange is her answer and not mine, and I am not going to characterize it for her. She is the same person I had already told about my autism, depression, and anxiety on the drive that day, and she reports directly to Corina Murguia. I also believe Ruthie de la Cruz was there, and I am saying believe on purpose. I am not certain, I have not asked her, and I do not want that recollection shaped by anyone before she gives it in her own words. One more fact that belongs here before anyone asks it at a deposition. I did not drink that night. Others in the group did, at the restaurant afterward, which is after this conversation had already happened. The attendee roster in Section G will show who was on that trip. That is the sequence: accountability first, then the disclosure, then the request for help, to the man who would sign my termination letter sixty-eight to seventy days later. It bears on three things Turner has put in writing. It answers resistant to coaching, because a man who apologizes unprompted to ten colleagues is not resisting anything. If Jeff Dolan is the decision-maker Turner has not yet named, it answers the no-knowledge position, because I said it to his face and he cried. And it is an accommodation request in plain English tied to a condition, which is all Chevron Phillips requires and all that Loulseged needs to start the employer's duty. Loulseged v. Akzo Nobel Inc., 178 F.3d 731, 735-36 (5th Cir. 1999). Turner never started

one. I rode with Jill Lause to the session that day and told her about my autism, depression, and anxiety during that drive. Testimony items; his own texts corroborate the relationship, and her template is the basis of Exhibit A-1.

> **Verification note, August 11.** The trip itself is no longer testimony-only. My personal Gmail holds native third-party records of the March travel: a Kimpton Cottonwood (Omaha) stay acknowledgment received March 16 and two airport-parking receipts from the evening of March 13 and the morning of March 14. What was said on the drive and after the session remains testimony, as this row has always stated; that the trip happened, when it happened, and that I traveled for it is now documented independently of anyone's memory.

A-10 April Lyra records

Apr 2026

Continued care through April, including a medication refill routed to community care and a session I rescheduled to accommodate a work meeting.

A-11 Personal texts to my mother and my partner

Feb 27-28, 2026

Screenshots in hand, full thread available on request. February 27 at 7:13 PM, to my mother, in one message: "I haven't even told you but Corina is coming into town to take over the project. I said something that I had no idea it had bad context so Jeff put me on a final warning. Asking if I want to be here. All while saying I'm doin a job. No matter how much I try to communicate with people, no matter how much I try to ask questions to understand, my mind will never work like a normal person. I'm always going to be alone and end up without a job. It's been eating me alive for a week but I got the call today to close it all out." Then, minutes later: "I'm going to turn off my phone. Having a hard time controlling my emotions." Five things sit in that one message and every one of them is dated February 27, 2026, months before any claim existed. Jeff Dolan delivered the warning himself, by name. The call included asking whether I wanted to be there. It also included, in the same conversation, being told I was doing the job, which is the line to read against Turner's July 24 account of documented performance concerns. The distress had been running a week, which puts its start at the February 20 window, days after the written disclosure at A-1 and B-33. And Corina taking over is stated on February 27, two months before the April 30 meeting at B-36 where she took over an intake in front of the employee who brought it. My mother's replies that night and the next morning are in the thread, including her February 28 suggestion that they might "just move you to somewhere else," which is the same reassignment I raised in the May 19 termination meeting at B-34. The following afternoon, February 28 at 1:54 PM, I wrote her: "I called my emergency EAP. Scheduled an appointment for new medicine. We have an on-site mental health therapist that I'm trying to go see today." That is my own contemporaneous account of self-referral, and it belongs next to A-3 and next to Turner's July 24 statement that it referred me to the program. One transcription note so nobody has to guess: the message reads "All while saying I'm doin a job." I read that as doing a good job and I am not going to smooth it into that. The screenshot is what it is and you should read it yourself. One more thing

sits in that message and it belongs to the theory rather than the timeline. Eleven days after I told Turner in writing that ambiguity and communication are where I struggle, I was disciplined for saying something whose context I did not read, and within hours I described it to my mother in exactly those terms, that no matter how much I try to communicate and no matter how many questions I ask to understand, my mind will never work like a normal person. That is not a legal argument constructed later. It is the same limitation, in the same words, written the same night, months before any claim existed.

A-12 Completed Owner's Manuals from Margarita Villagran and Jake Overman

Mar 11, 2026 and earlier

The same company template completed by other employees, Villagran on March 11 and my former manager Overman before that. The disclosure came through a program Turner itself ran, at my supervisor's request. Received by me in the ordinary course in my HR role while employed and authorized to hold them, retained solely for transmission to counsel, not used, shared or disclosed outside this index prepared for counsel. Whether Turner has any claim to their return is a question I am putting to you rather than waiting for Turner to raise, and the same custody treatment applies to B-19 and B-32. For counsel use only.

A-13 Psychiatric treatment records, Vytalus Medical Group (Marriyam Jawad, MD, Kingwood TX)

Jun 2024 - present

Portal record documenting bipolar disorder, ADHD, anxiety, and depressive disorder with onset June 2024, and insomnia recorded June 19, 2024, which is the entry the sleep argument in Section H rests on, an active treatment visit April 16, 2026, thirty-three days before termination, and a July 22, 2026 encounter after termination. The July 22 visit note states a medication "will be too expensive, patient is self pay," documents four active psychiatric prescriptions, and records that controlled-substance monitoring showed no issues. A treating physician tying the loss of coverage to altered care, in the chart. Full records request in progress; treatment continues out of pocket.

A-14 Lyra late-cancellation record and 105 dollar charge

Feb 23, 2026

The first therapy session Turner’s own EAP booked for me was cancelled fourteen minutes before it started, because of work. The session was set for 11:00 AM on February 23 with Ronelle Boyd. At 10:46 AM I wrote to the provider: "I need to reschedule our session due to an unexpected HR emergency that requires my immediate attention. I apologize for the short notice and appreciate your understanding." That message bounced twelve seconds later because Lyra routes provider mail through a no-reply address, so it never reached her. At 11:18 AM Lyra sent the late cancellation and no-show notice, and it says this: "Usually, we will charge you a late cancellation/no-show payment of $105.00 to protect our provider's time. Turner (Staff) has covered this payment this time as part of your benefits." Turner paid it. Four days before the February 27 warning, Turner Construction spent its own money on a mental-health session I missed. The same email warns, "If you incur another late cancellation/no-show payment, you may be responsible for the charge," which matters to A-15. Later the same day Mr. Dolan texted me about the

work phone I had left at the office and told me I was doing great things under a difficult situation, and I answered that I just needed to disconnect. Those messages are the February 23 half of A-6 and E-1. This is a dated third-party record, generated by Turner's own vendor, that work pulled me out of the first mental-health appointment the company's own program had arranged and that the charge landed on Turner's own benefits ledger, where the transaction can be pulled. Care did not stop; Ronelle sent new activities two days later.

A-15 Lyra telehealth session missed on the Omaha trip

Mar 10, 2026

The second session was telehealth, booked February 16 at 7:13 PM with Dr. Stacy Waneka for Tuesday, March 10 at 11:00 AM. Turner then put the HRM Bootcamp in Omaha on March 10 through 12, set with less than a month's notice, and I could not join the session from the trip. Lyra reminded me March 7 and again March 9. On March 10 my provider messaged me at 9:45 AM, the session-starting notice went out at 10:49, she messaged again at 10:58, and at 10:58 she rebooked me for April 15 at 3:00 PM. At 1:13 PM Lyra wrote asking me to add a payment method, saying "we require this information for late cancellation and no-show payments." At 1:14 PM, one minute later, the April 15 rebooking was cancelled by the provider. Lyra asked for the payment method again on March 16. This is the same trip where I disclosed in person to Jeff Dolan and rode with Jill Lause and told her about my autism, depression, and anxiety, which is A-9. Two Turner leaders heard it in person on the trip that was keeping me out of the appointment Turner's own program had booked. Together with A-14 and the April session in A-10, work displaced treatment three times in nine weeks, and every step of it is timestamped by Turner's vendor rather than by me.

Causation, by dates alone: friction on Feb 9; the Owner's Manual finished Feb 16 with first EAP contact the same day, delivered to Corina in writing Feb 17; the first booked therapy session cancelled Feb 23 for a work emergency, with Turner paying the missed-session fee; the verbal final warning Feb 27, delivered by phone by Jeff Dolan; a panic attack beginning at 5 PM that day and a crisis call the next afternoon; leadership texts about my condition through March; the March 10 telehealth session missed because Turner put me in Omaha, on the same trip where I disclosed in person to Jeff Dolan and Jill Lause; an April care session rescheduled to make room for a work meeting; the May 4 memo; the May 19 termination; and treatment continuing since. The care events cluster on identifiable employment dates, February 16 and 17, February 23, February 27 and 28, March 10, and April, and the care record escalates in step with the employment record. I am putting the two sequences beside each other so you can judge the fit rather than take my word for the pattern.

B. Performance Narrative and Pretext

B-1 Text exchange with Joe Glowacki

Mid-Apr 2026, date to confirm

Corina told me MVP was being sourced over concerns about my engagement and performance, attributed to Glowacki. Asked directly, Glowacki texted: "I complimented your engagement and appreciated you

asking for assistance with the issue." The stated reason, contradicted in writing by the person it was pinned on.

B-2 Teams reset message, preserved same day

Feb 9, 2026

My measured reset message to Corina, captured and sent from my Turner account to my personal email the same day. The transmission is confirmed on its own headers: gbaxley@tcco.com to my personal address, February 9, 2026 at 5:26:06 PM Central, carrying a single image attachment with no subject line and no body text. That is the capture of the message itself. It is in my personal mail today and I can produce it with full headers, and because it moved across Turner's own mail servers the preservation date is fixed by Turner's systems, not by anything I say. This is a different document from B-29, which is the separate written email of the same date.

B-3 Corina "Edited" message pair (screenshots)

May 7-8, 2026

On May 7 at 4:19 PM Corina praised and thanked me for sending the meeting recap. The marker shows she edited that message at 7:07 the next morning, and by 12:49 PM that day she sent the Teams-status and cc-me directive. Her own written praise, edited the following morning. I do not know what she changed and I am not going to guess; the Teams container with edit history is in Section G and it will say. Teams keeps message version history, so the original wording is recoverable from Turner's systems.

B-4 Email exchange with Corina (2:48 PM / 3:01 PM)

May 13, 2026

Six days before termination she asked to "understand your thought process" on a deliverable. My reply came 13 minutes later and shows I followed her prior direction, stayed in scope, and closed "open to any and all suggestions." Contemporaneous written evidence inconsistent with the claim that I was resistant to coaching.

B-5 Supervisor-training thread

May 11, 2026

I directed the scheduling of supervisor training on my own initiative, including my written May 11 message tagging Jordyn directly: "can you please schedule the supervisor training for Thursday? Given Clayco's first intern arrival was today, it would be helpful to get that confirmed." I responded cooperatively to every follow-up.

B-6 SPO recruiting flier thread (full native email chain)

May 13-16, 2026

In my final week I produced four recruiting flier versions on my own initiative, and Regional HR Director Tracy Hagen replied to me directly on May 13: "You're awesome! Let's get on a call." When Google's client feedback came back May 14, the redo was routed to me and I delivered the revised set the same evening,

closing "Always happy to support wherever I can - One Team." A senior HR leader praising my work by name six days before the termination. The engagement framing belongs at B-1, where the record supports it. On May 15 and 16 Hagen called the fliers marvelous and very well done, asked for editable versions, and relayed that the shift to office and BU based versions came from Lonnie's direction. The redo was a strategic pivot, documented as such, not a quality issue.

B-7 Positive-record set

2025-2026

Intern program materials and thank-yous; Tracy Hagen calling my work marvelous, which is B-6; Jeff Dolan's written recognition of my on-site response to the March 20 fatality; Jasmin Pintor's written request for my partnership on the ETS process; and Joe Glowacki's 1:12 AM request for EVP leadership analytics due by noon.

B-8 Holiday schedule email to Corina, 7:31 PM

May 14, 2026

The last documented friction before termination, five days out. I built the JV holiday draft off Andy's written May 11 request, with Dan V confirming Clayco's calendar aligned, and went into the meeting reviewing it as a starting point. Corina raised a different understanding of what Andy wanted only after the meeting ended. My reply is calm and in writing: "I would have appreciated knowing that before the meeting so I had a chance to adjust or clarify ahead of time." The same pattern my May 4 memo named, happening again in real time. It is also the pattern in its plainest form. I asked to be told the expectation before the meeting rather than after it, which is a concrete adjustment and not a preference about tone: advance notice of what a deliverable is supposed to be, in writing, for a person whose disclosed limitation is that ambiguity is where he struggles. That is the accommodation a single conversation would have produced, and it is what I had already asked for in writing on February 17. Nobody at Turner ever had that conversation with me.

B-9 Intern program email to Corina and Jordyn, 12:18 PM

May 5, 2026

Sent ahead of our scheduled meeting, walking them through my revisions with reasons, and closing: "We can change anything either of you sees fit. This needs to feel like our voice, not mine, when supervisors hear it." Two weeks before termination, in writing, inconsistent with the claim that I was resistant to coaching.

B-10 The two matters later called mishandled

Apr-May 2026

This row holds the first of them and B-36 is the recorded instance of the second. Both trace to Corina's handling, not mine. Meghan Davis complained to Kevin Ward about how Corina handled her meeting and has told me more than once she would testify. Testimony item. Her underlying email to Kevin Ward is employer-held and listed in Section G, and her written statement can be obtained.

B-11 Tandee Butler email to Emily Tribbia (Turner HR looped)

May 6, 2026

A witness documenting the same pattern in writing, thirteen days before my termination: she had been promised a meeting with senior management and HR before any meetings that would change her role or responsibilities, and she asked for that meeting. She added Turner HR to the thread herself.

B-12 Internal ER response-plan thread

Apr 2026

The native thread from the April matter showing the structured plan I put in place: reinforcing reporting channels, a supportive follow-up conversation encouraging early escalation, and refreshed workplace-conduct and anti-harassment training scheduled within two weeks. Professional handling, in writing, of the matter later characterized as mishandled. On April 23 the National HR Director, Steph Curran, addressed the coordination to me directly ("Introduction: Coordination on Employee Matter"), with Corina copied. National HR worked the matter with me, not around me.

B-13 SPO onboarding email

Feb 20, 2026

Written praise from operations leadership: "help him with housing as you have done a great job with this." Joins the positive record.

B-14 Termination letter, with the June 5 review outcome email at C-6

May 19, 2026

The May 19 letter, signed by Jeff Dolan, gives no reason in writing. It says as discussed with you today, and offers $20,800 (two months), $1,865.66 grossed-up COBRA, and outplacement, conditioned on my executing a general release within 21 days, which Turner promised to counter-sign and which I never signed. The same letter names Businessolver as the benefits administrator and promises written advice of my rights under Turner's benefit programs within three weeks of my last day, due around June 9. Nothing ever came, which is why Section H treats the COBRA election clock as having no start date. Performance and availability were stated orally in the meeting, B-34, and availability was the Teams-status issue from the May 7-8 exchange in B-3, so the oral reason and the edited-message evidence are the same thread. The June 5 review email, C-6, is the first written statement of grounds, shifting to lost confidence in my ability to perform the Human Resources responsibilities of my role, based on concerns about collaboration and adherence to leadership direction, and adding the device images. The written record starts with no reason at all and changed each time it was written down.

> **Verification note, August 11.** Nothing ever came is no longer recollection. The complete 14.5 GB Takeout mailbox including Spam and Trash, live Gmail, and every file and archive on my machine were machine-searched on August 11: zero Businessolver correspondence of any kind, zero COBRA election

> notices, zero FSA runout notices. The Section H position that the 60-day election clock has no start date rests on a documented, repeatable search.

B-15 Corina "Follow-up" template email

Feb 5, 2026

The fully drafted message she sent for me to copy and send to executives, positioning her as the driver of follow-up and narrative. The moment my Feb 9 message responded to, in her own words.

B-16 Google hiring email chain

Feb 18, 2026

Corina agreeing with my judgment in writing on the hiring and governance question, nine days before the verbal final warning.

B-17 Corina ethics and compliance training email

Mar 26, 2026

She initiated and held the training process with Ken Winfield that leadership later pressed about while the questions were directed at me.

B-18 Data packet to Alex Willis

May 7, 2026

The project baseline workbook, the Goings safety tracker, and the current org chart, sent twelve days before termination. Willis confirmed receipt and his review plan in writing. Alex Willis later told me it was one of the best data sets he had ever seen; my recollection of his oral statement, and he is a witness who can confirm it.

B-19 Assignment memo for M. Garza, cc Garrett Baxley

Feb 20, 2026

Third-party compensation record received by name in my HR role. Documents the approved CTS LoneStar package: 11,892 monthly Living and Travel Allowance, 20 percent travel incentive rising to 25, relocation, and assignments running through November 30, 2028. Relevant to valuation and joint-employer analysis. Received by me by name in the ordinary course of my HR role while employed, retained solely for transmission to counsel, and covered by the same custody disclosure as A-12 and B-32. For counsel use only. One arithmetic point on this row that cuts our way. The 11,892 monthly figure equals my own Living Allowance alone, since 5,488.62 biweekly times 26 divided by 12 is 11,892.01, and 960 over 4,800 is exactly the 20 percent travel incentive this memo describes. Either the label on this line is imprecise, or it independently corroborates the composition of my own package at B-20.

B-20 Final two Turner pay stubs

May 15 and 22, 2026

Turner Construction Company payroll, produced by Turner's own counsel on July 27 to answer a different question. What it answers instead is this one. Shows I was on the full package: 4,800 salary, 5,488.62 Living Allowance, 960 travel incentive, and 438.46 Auto Allowance per period, biweekly, about 303,900 a year across those four components. On the pay dates: my stubs run May 1 and May 15 on the normal biweekly cycle, and the May 22 check is off-cycle, cut three days after the May 19 termination to close out the May 10 to May 23 period. That is why the last two stubs sit a week apart rather than two. Both net amounts match my bank deposits to the penny, so the stubs are complete as issued and the gap is not a banking gap. What is missing is inside the stubs themselves. The final check shows the gap plainly. Turner prorated at exactly 70 percent, paying 3,360 of 4,800 salary and 672 of 960 travel incentive, which is seven of the ten workdays in the May 10 to May 23 period because I worked through May 19. It then paid zero Living Allowance and zero Auto Allowance for those same worked days. Applying Turner's own 70 percent to those two lines gives 3,842.03 plus 306.92, which is 4,148.95 unpaid, and I am giving you the exact figure rather than the round one because it is a sum I would be demanding. A second item sits alongside it, roughly 3,848 in accrued travel incentive. I am flagging that one, not asserting it, because I cannot show the accrual math from the documents in hand and the terms need to come from Turner. One caution on it: 3,848 sits within six dollars of the 3,842.03 Living Allowance proration above, so confirm it is not a transposition before it goes anywhere.

B-21 Gabriel Polanco onboarding and relocation thread

Apr 16 - May 12, 2026

When a 29,400 lease-break request came in, I escalated to Joe and Paul rather than approving it alone, and my recollection, supported by the May 19 search record at B-37, is that the chain decided together. I issued the revised assignment memo, coordinated WBS, and Jordyn launched relocation. Project-side HR running a home-BU employee's onboarding end to end, one week before termination. Chain-following judgment and joint-employer texture in one thread. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G.

B-22 BC4 Campus Recruiting Alignment meeting notes

May 14, 2026

Turner's own meeting notes, five days before my termination, documented that role ownership was ambiguous enough to require formal clarification, named Jeff and Kevin as the leadership responsible for communicating updated responsibilities, and held up the Texas model as the benchmark for 2026 through 2028 growth. They terminated me five days later instead of clarifying. If that is what the notes say, this is the keystone document in the file, and it is Turner's, not mine. Eighty-six days before it, I told my supervisor in writing that ambiguity is where I struggle and asked for direct coaching. Turner's own notes then recorded that role ownership was ambiguous enough to require formal clarification and named two executives to communicate it. Turner identified the exact condition I had disclosed I could not navigate, assigned leadership to fix it, did not fix it, and terminated me five days later for failures that are what that unresolved ambiguity produces. That is why the creation metadata and the native for this document sit near the top of Section G. That characterization came out of the May 19 mailbox search preserved at B-37

and not from notes I have read, so it should be confirmed against Turner's production before anyone relies on the wording. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G.

B-23 Sandy assignment memo chain

Apr 24 and May 2026

Sandy returned the executed memo April 24. I sent it through the BU chain to Merrill with Paul and Jordyn copied, and Paul forwarded it to Boston HR. When Jordyn later asked whether it had gone to the home HR team for payment, my recollection, supported by the B-37 search record, is that the answer was yes. The thread itself will confirm it. A late-window process question, answered by my own paper trail. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G.

B-24 Corina exchange, both directions (email 4:46 PM, Teams 6:04 PM)

May 4, 2026

The same day as my memo to Kevin Ward, I emailed Corina flagging that two more role-clarity emails had come in from Tandee and one from Riley, said I planned to connect with Riley as she suggested, and asked whether she preferred individual handling or a broader approach. Her Teams reply that evening asked me to come prepared with a high-level overview of the concerns and my recommended approach, and asked me to set up the meeting with Clayco HR on the Dan B. incident. Fifteen days before termination she was soliciting my judgment and routing the Blanton matter through me, across JV member lines. Screenshots in hand. The natives are held by Turner. Search record at B-37, discovery ask in Section G.

B-25 Compliance-mitigation message to Andy Tandon and Paul

May 11, 2026

My 11:37 AM message: Alex Willis and I had the CTS interim awareness landing page built and tested, with a Willis video reinforcing Google's communication directive and an employee acknowledgment, as an immediate control while the formal June 10-11 training was finalized, requesting green light to launch to the JV team. The origin: Google's account representative Alex Saleh had directed all CTS personnel to cease direct communications with City of Haskell officials and route everything through Matt Miller or himself. My words as they read on the screenshot I hold: "Alex Willis and I have prepared an interim communication acknowledgment in response to Alex Saleh's directive regarding City of Haskell communications." Andy and Paul, the head operations managers, engaged the formal June 10-11 training lane but never answered my green-light request for the interim control despite multiple pushes without objection, so I proceeded May 13 with completion required by May 15. This was a client-driven matter, not a Turner one; the internal Turner chain outside Jordyn on site had no visibility into it. Eight days before termination I was building and shipping the client's compliance control with a program owner, addressed to the project executives who stayed silent. The May 19 acknowledgment emails in Section G came from this system: the control I launched was live and working the day they terminated me. Screenshot in hand. The native is held by Turner. Search record at B-37, discovery ask in Section G.

B-26 Meetings and information routed around me (three captures)

Apr 28 - May 2026

April 28: the Intern Discussion meeting with Corina and Jordyn started in the conference room next to my office, Jordyn messaged they were pushing it, and it ended after two and a half minutes; I offered to join remotely immediately and Corina answered that the meeting would be in person and to let them know when I was there. My contemporaneous photo captures it in real time. Separately, Jordyn told me by text she had stopped using the project tracker for her own spreadsheet and had already arranged with Corina to present to leadership, which I learned only by asking; my reply was coaching, in writing: let's talk about why things are overwhelming or what we can do to adjust. And after my May 11 written delegation, Jordyn emailed me with Corina copied asking whether I got it scheduled during her absence. A report-to-manager channel forming around me in my final weeks, with my measured responses on the record. Screenshots in hand, though I do not have exact dates for every item in this row. The natives are held by Turner. Search record at B-37, discovery ask in Section G.

B-27 Joint-employer identity records

May 1, 2026

Andy Tandon's hiring email is addressed to me at gbaxley@ctslonestar.com, alongside my tcco.com colleagues, and my own outbound signature block carried the CTS LoneStar logo. The JV issued me its own email identity and leadership used it for project hiring traffic. Direct integrated-enterprise evidence for the respondent question. Screenshots in hand. The natives are held by Turner. Search record at B-37, discovery ask in Section G.

B-28 Teams status context (native exchange in hand)

Oct 2025 - May 8, 2026

The availability point raised at the May 19 termination meeting traces to my Teams presence setting, which had been set to appear offline from my first week in October 2025 and never changed. My sleep has never been a secret at Turner. I told colleagues routinely that I only get a few hours a night, and insomnia has been in my medical record since June 19, 2024, months before Turner hired me. Jeff Dolan's own March 21 text asked whether I had gotten any rest. The setting was about not broadcasting that I was working at odd hours, not about concealing something the people around me already knew. No one raised it for seven months, from October 2025 until May 8, 2026. Teams was the Turner-internal channel and Corina used it with me, which is B-3. The CTS project work itself ran on Google products by client mandate, where Teams presence does not exist. My compliance landing page was a Google page and the intake notes were Gemini auto-notes, so a Teams indicator did not reflect my availability to the JV team it was raised about. When Corina raised it at 12:49 PM on May 8, the same day she edited her own praise message at 7:07 that morning, I replied the same day: Understood, I'll update it. Eleven days later it was named as a ground in the termination meeting, although the letter itself states no reason at all. This row is the lead strand of the case and it should be read before the rest. The availability ground was never tied to a task I could not perform. To be precise rather than sweeping, because Turner never charged me with lateness: no Turner writing ties the availability point to a missed deadline or an unfinished deliverable. Turner did criticize engagement and performance, at B-1, and named two matters it called mishandled, at B-10, and says it

coached me extensively. Those are answered elsewhere in this file on their own terms. What is missing is any link between the presence indicator and a task. It was tied to when I was awake, which is the impairment, and that is the distinction Nall v. BNSF Railway Co., 917 F.3d 335, 348 (5th Cir. 2019) turns on, where the Fifth Circuit reversed summary judgment because the employer's concerns were tied to the plaintiff's impairment rather than to his ability to do the job. Sleeping is named as a major life activity in the statute itself, 42 U.S.C. section 12102(2)(A). The insomnia is documented from June 19, 2024, which is fifteen months before Turner hired me, so it is neither recent nor produced by this dispute. And Turner knew: Mr. Dolan asked in writing on March 21 whether I had gotten any rest, at A-6 and E-6. An off-hours work pattern is what a documented sleep impairment looks like on a calendar. I am not asking anyone to excuse conduct here. I am saying the ground itself describes the impairment.

B-29 Written reset email to Corina (Aligning on JV Execution)

Feb 9, 2026

Eighteen days before the verbal final warning, I named the routing problem to Corina in writing: "a shift from me owning the work to me executing work that is increasingly framed, validated, or routed elsewhere," "What doesn't work for me is a structure where authority, narrative, or executive partnership shifts away from the person being held accountable," and "I need to reset this." The warning came Feb 27. My May 4 forward to Kevin Ward stated the concern had been raised to my manager in writing four times over three months; this is the first. B-2 is the same-day capture of the Teams exchange and is in my hands. This row is the separate written email, subject Aligning on JV Execution, and it is not in my personal mail, so it sits in the Turner mailbox with the rest. Two documents, one date, and they should not be read as one item. The wording here came from the May 19 mailbox search preserved at B-37, not from a document in my hand, and I am not calling it a quotation from a native. The native is held by Turner. Search record at B-37, discovery ask in Section G.

B-30 ER alignment record: the April 20 memo and the written thanks

Apr 20-29, 2026

My April 20 memo documented, in numbered form, the domestic-violence matter Paul Rooney and Lucy Villanueva knew about for roughly two weeks without engaging HR, the Carl Mouser and Troy Harmon matter where Andy and Paul never spoke with me despite my proper chain-of-command escalation through Corina and Corey Ketchum, third-party MVP discussions run without alignment with me, and the Tandee Butler episode where I acted on executive direction and was then investigated for how I handled it. I emailed it April 22. Kevin Ward replied in writing: "Thank you for all of this detail! I second what Corina outlined below. Please keep us posted." Corina replied: "Thanks again for all the work going into this, Garrett." On April 23 I completed the formal workplace-violence assessment, CTS.AC.23.docx, covering the April 4-6 arrest and jailing of one of two married Clayco employees who both worked on the project, the subsequent aggressive workplace behavior, and the JV-wide impact across named Clayco and Turner personnel. The JV investigated it with me, a Turner-payrolled HR Manager, running the process across member lines, and leadership then allowed both spouses to continue working together in the same office after the arrest; my assessment flagged the risk they chose to tolerate; I shared it confidentially with

Jordyn on April 29 to develop her, and she reacted warmly. Twenty-seven days before termination, the senior HR leadership thanked me in writing for the exact ER work later recast against me. Screenshots in hand, alongside text recovered from my own mailbox search rather than from the documents themselves. The natives are held by Turner. Search record at B-37, discovery ask in Section G.

B-31 Two oral statements by Corina (my recollection, circumstantially corroborated)

Apr 24 and Apr 29, 2026

On April 24 Corina ended a conversation with "OK fine Garrett goodbye." On April 29 she told me: "Maybe you need to do some reflecting to see why people are coming to me instead of you." These are my recollection of oral statements, stated as such. The surrounding documents corroborate the circumstances: April 28 the intern meeting next to my office started without me and my remote join was declined, that same week Jordyn arranged with Corina to present leadership materials from a side spreadsheet I learned about only by asking, and on April 29 itself Joe wrote "Sorry Garrett. Forgot to copy you." I read her remark as pointing at the pattern the surrounding documents show forming around me. The words are hers only as quoted above; the reading is mine.

B-32 Communication Discipline acknowledgment tracker (file in hand)

May 11-20, 2026

The Google Sheet ledger behind the interim control, four tabs: Submissions, Escalations, Activity Log, Roster. 107 acknowledgments from May 11 through May 20. The first entry is my own test submission, May 11 at 12:39 PM, from gbaxley@ctslonestar.com, just over an hour after my 11:37 AM green-light request. Seven acknowledgments arrived on May 19 itself, including Ricardo Mallett at 11:14 AM, Andrew Kunigenas at 12:42, and Angela Nelson at 1:00 PM, with TW Constructors' VP of Marketing at 4:35 PM; the control was processing acknowledgments across the JV while I was being terminated, and one more came May 20. The Escalations tab caught four live Haskell exposures in the first 48 hours, including sponsorships approved by Matt Miller, a March 28 cleanup event, a toolbox purchase for a high school program, and the Haskell Community Center lease rebuild: the control was working. On identity: roughly 85 of the 107 wrote CTS LoneStar or a variant as their company, with all four members represented, including Tara Ebner, TW Constructors' own Director of Human Resources, completing my control. 107 people across four member firms acknowledged through a CTS LoneStar system in my name. The dashboard emailed submissions to my CTS mailbox, which is how a copy exists at all. I am not going to state the export date from memory, because the sheet itself carries entries through May 20 and you should have the actual path and date rather than my approximation of them. I am documenting exactly how and when this copy was made, and it comes to you alongside D-13, where the rest of the post-termination file question sits.

B-33 Owner's Manual email to Corina Murguia

Feb 17, 2026

Ninety-one days before termination I sent Corina my completed Owner's Manual with an email saying I had never shared something at this depth in a workplace, that it was not an excuse or a request for special treatment but context that would let her coach me more precisely, and asking that it stay between us. I

know what that line does for them, so I will say it first. I asked one person to hold it in confidence, which is what a person does when he hands his manager something that personal. It is also why the July 24 letter can say the disclosure went no further, and it is why Section G asks whether it did. The attachment describes me as system-minded and high-context and says structure regulates me. The Owner's Manual was required Turner HRM Bootcamp pre-work covering communication style, conflict style, motivations, and triggers, and that bootcamp was the March 10 to 12 Omaha session where I made my in-person disclosure to Jeff Dolan. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G. The Outlook identifier for it ends AABat_nSAAA. This is the transmittal email for the manual indexed at A-1. It is the only native behind Section A that I cannot produce; A-2, A-5 and A-9 are testimony items and A-13 is on request, and each of those rows says so.

> **Verification note, August 11.** The Wave 2 reconstruction document on my machine and in Drive preserves a section titled Direct transcript: February 17, 2026 email to Corina, carrying the full body text as the May 19 connector session returned it. It is connector-derived, not a native, and its only proper use is as the benchmark Turner's production of AABat_nSAAA is measured against. The attachment itself is native in my files and in Drive in two copies, and Drive also holds Margarita Villagran's completed manual dated March 11, corroborating the template program. A live-Gmail search of February 2026 for Murguia mail returns zero hits, confirming the body exists only in Turner's systems, exactly as this row states.

B-34 Termination meeting statements, my recollection

May 19, 2026

In the termination meeting I referenced the document I had provided to Kevin Ward and Jeff Dolan requesting support. Jeff Dolan responded sarcastically, yes we got the "thoroughly detailed document." I then asked Jeff why the first resolution was termination rather than relocation. The first paragraph of that email is mine, typed the same afternoon, and it is the only part of it I am offering as my own contemporaneous words. B-37 explains what the rest of that message is and why it is a different kind of evidence. At 3:44:42 PM Central on May 19, hours after the meeting, I emailed myself: "I was in the middle of saying that I provided the document to Kevin and Jeff requesting support and Jeff's sarcastically said yes we got the thoroughly detailed document I question Jeff why the first resolution is termination rather than relocation." That message is in my personal mail with full headers and I can produce it. Performance and availability were both stated out loud in that meeting as the grounds and neither was ever put in writing; that part is my recollection of oral statements, and it is what B-14, B-28 and Section H rely on when they cite this row. The same-day email is at B-37. This is my recollection of oral statements in that meeting. It shows the decision maker acknowledged my written request for support at the moment of termination and that I raised a lesser alternative in real time that was not explored.

B-35 Cross-member removal worked with TW Constructors HR

May 11-19, 2026

In the same week Turner terminated me, I worked directly with Tara Ebner, Director of Human Resources for TW Constructors, on removing a TW employee from the CTS project. TW made the employment decision as that employee's employer of record; my role was the project HR counterpart coordinating the removal across member lines. Another member firm's HR Director engaged me as the JV's HR authority on a personnel action in my final week, which is cross-member control of labor relations and goes to the respondent question alongside B-27 and B-32. And the June 5 statement that local leadership lost confidence in my ability to perform the Human Resources responsibilities of my role was written about the same days in which a peer HR Director at another member firm was working a removal through me. My account, with Tara Ebner as a witness. The messages are held by Turner. Discovery ask in Section G. Separately, my own April reconstruction notes place Tara Ebner in a Follow-Up on Employee Concern and Next Steps coordination alongside Stephanie Koffsky, Steph Curran, and Corina Murguia, which is a different matter from the May removal but shows the working relationship was not a one-off. That April note is my own reconstruction, not a native, and I flag it as such.

B-36 Dan Blanton intake meeting on his hostile work environment concern

Apr 30, 2026

Nineteen days before my termination, Dan Blanton brought me a concern about a hostile work environment. We scheduled a sit-down to go through it. Corina Murguia was on the invite and joined about ten minutes late. From the moment she joined until she left, she dominated the conversation, and I am not certain I said another word. The employee had come to me, the meeting was mine to run, and my manager took it over in front of him. This matters in four directions. It is the mechanism behind B-10, where the two matters later called mishandled both trace to Corina's handling rather than mine. It sits directly against the June 5 statement at C-6 that local leadership lost confidence in my ability to perform the Human Resources responsibilities of my role, resting that conclusion on concerns about collaboration with the HR team and adherence to leadership direction, because what I did was run an intake the employee brought to me, and what happened is that my supervisor took it over in front of him. It is the same shape as the Meghan Davis complaint in Section F, where another employee went to Kevin Ward about how Corina handled her meeting, so it is a pattern and not an incident. And Dan Blanton was reassigned afterward. There is a neutral record and Turner holds it. The project ran on the mandated Google stack, so this session generated a recording and Gemini auto-notes. My account is above; the recording will confirm it or it will not, and I am not going to characterize a document I have never seen. One exception, so the line is clean: I saw the phrase legally hostile workplace in the auto-notes while I still had access, and that is the only part of this I am reporting from having seen it. I have not seen the recording or the transcript, and I am inferring that a recording exists from the mandated Google stack rather than knowing it. Section G asks for the original because nobody should rely on that wording until the source is produced. Dan Blanton and his wife Amber Blanton are both witnesses, and this is separate from the April Clayco matter at B-30, which involves different people.

B-37 Same-day self-email preserving my account and the mailbox search results

May 19, 2026

Sent from my personal address to myself at 3:44:42 PM Central on the day I was terminated, with full headers, in my hands now. It has two parts and they are not the same kind of evidence, so I am separating them for you rather than letting them blur. The first paragraph is mine, written that afternoon: the sarcastic thoroughly detailed document remark and my question about why the first resolution was termination rather than relocation. That is contemporaneous and it is the source for B-34. Everything after it is output from an AI-assisted search I ran against my own Turner mailbox that same day, while I still had access. It quotes and dates messages I can no longer reach, including the May 4 GB HR Concerns escalation to Andy Tandon, the forwarded Ahead of tomorrow's meeting note to Kevin Ward, and the line that I had raised the concerns to my manager in writing four times over the past three months without resolution. I am not offering that second part as a quotation from a native and you should not use it as one. What it is worth is this: it is a dated, header-bearing record, made on the day of termination, of what a search of my live mailbox returned before access was cut. It is the provenance for the eight items in Sections B and C that I cannot produce, and it is what a preservation demand should be measured against when Turner produces the originals.

> **Verification note, August 11.** Custody of this record no longer rests on one copy. Four independent locations hold it: the Gmail-export native on my machine, MD5 46176be1cf5bc1ab27e68b0272963f7c; two byte-identical Gmail direct downloads, MD5 cc4b1be08d8de6dc1a1f501e32892367; the complete Takeout mailbox; and the live Gmail mailbox itself, confirmed by authorized connector on August 11, thread 19e41fbd186b31d9, message 19e41fbd383c20d1, 2026-05-19T20:44:42Z. And I am disclosing the rest of that evening myself rather than leaving it for Turner to raise: this was one of eight self-emails I sent between 1:44 PM and 6:07 PM Central that day preserving the connector-session outputs and my own account while I still could, each Gmail-timestamped and in my hands. Read both ways, that is a same-evening preservation family that independently attests what this row carries, and it is also the record of a terminated employee searching his mailbox before access was cut; both readings go to you together. One labeling rule so no row understates it: wherever this index says search record at B-37, that phrase means the AI-assisted mailbox-search output this row describes, subject to every limit this row states.

C. Escalation Chain and Retaliation Timeline

C-1 Reset to Corina (capture at B-2, email at B-29)

Feb 9, 2026

The first measured escalation, preserved the same day.

C-2 Email thread with Jake Overman ("CTS/CMDA/JRN Alignment")

Apr 9, 2026

The second escalation, to my prior manager. The substance has never been disputed. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G. Two things ride on this row that you should know about. It is the earliest April act in this index, so the 180-day arithmetic in Section H

anchors to its date. And the date itself comes from my mailbox search and not from a document in my hand, so it should be confirmed against Turner's production before anyone relies on the October 6 figure.

C-3 Escalation to Kevin Ward and Jeff Dolan

Apr 20, 2026

The third escalation. Twenty-nine days before termination I emailed Jeff Dolan directly, copying Kevin Ward, with the subject Alignment. It describes a growing misalignment between my role as HR lead on CTS and how HR was being engaged, states I was expected to execute and be accountable for outcomes without being included in upstream communication, gives the example that Paul Rooney and Lucy Villanueva knew of a domestic violence related situation for about two weeks while I was neither informed nor engaged, notes my ER capability was questioned on matters I was not included in, says I had raised these communication concerns directly with Corina and the patterns continued, and asks for alignment on how HR is engaged and how my performance is evaluated relative to my actual involvement. Kevin Ward acknowledged the next day and planned a May site visit. Note what this email is about as my May 19 mailbox search recorded it, which is not the same as having read it. It is about being held accountable for outcomes while being left out of upstream communication, which is the same limitation the February 17 disclosure named and the same one Turner's own May 14 notes at B-22 later recorded. I raised it to my manager, then to my prior manager, then to the man who signed my termination letter, and the pattern continued. Whether this email also uses the language of disability is a question for the native, and Section G asks for it, because that wording decides whether this is protected activity or only notice. Direct written notice to the decision maker who signed my termination. Held by Turner. My account, plus the May 19 search record at B-37. Discovery ask in Section G. The Outlook identifier for my April 20 message ends AACBr4PhAAA and the identifier for Kevin Ward's April 21 reply ends AACBrxQLAAA, which should let a preservation demand name these two items specifically rather than describe them.

> **Verification note, August 11.** The operative language of this email survives in a native I hold. My June 2 Request for Executive Review at C-5, confirmed in live Gmail, quotes the April 20 message directly: a growing misalignment between my role as the HR lead on the CTS project and how HR is being engaged across both the project and BU, and expected to execute and be accountable for outcomes without being included in the upstream communication, decision-making, or escalation. So the core content of the April 20 email is attested by a contemporaneous native sent to the CEO within two weeks of termination, in addition to the B-37 search record. A live-Gmail subject search for Alignment across April 2026 returns zero hits, confirming the native itself sits only in Turner's systems.

C-4 Memo to Kevin Ward (GB.5.4) and his written reply

May 4, 2026

My reset memo, which named the pattern of my concerns being recharacterized as performance criticism months before Turner's counsel used that exact mechanism. Ward's written reply, now captured natively: "I appreciate all of the context you provided. With Jeff out for the next 2 weeks, I'll find some time for us to talk so I can get a full understanding. Additionally, I'm planning a visit to Haskell for the 2nd or 3rd week of

May. I look forward to talking." Jeff Dolan was out for the two weeks that followed, which ran to roughly May 18. The promised conversation and visit never happened. The termination came May 19, upon his return. The stated decision-maker was absent while the decision was assembled.

C-5 Escalation to CEO Peter Davoren ("Request for Executive Review")

Jun 2, 2026

The escalation to the top of the company, two weeks after termination. I sent at 11:19:14 AM Central on June 2 to Peter Davoren and Abrar Sheriff, copying Patrick Blake and Aaron Wiebelhaus, under the subject Request for Executive Review. Davoren replied at 11:49:37 AM, thirty minutes later, and his reply added Rodney Pope to the recipients: "Rodney Pope will reach out to you today or tomorrow. Please be available to engage. Thank you. PJD" Pope himself wrote at 11:54:05 AM, thirty-five minutes after my email: "I will send you a meeting request to speak with me. When is the best time this afternoon after 4:30pm?" Five named executives were on notice inside thirty-five minutes, including the CEO and the Senior Vice President of Employee Relations, and this is where Rodney Pope enters the matter. My opening line states I was writing before my severance deadline expired, which fixes that this escalation happened while the twenty-one day release window was still open. Native headers held.

C-6 Rodney Pope review outcome email, 9:05 AM

Jun 5, 2026

From Rodney Pope, Senior Vice President of Employee Relations, sent June 5, 2026 at 9:05:24 AM Central to me, copying Abrar Sheriff, Patrick Blake, Aaron Wiebelhaus, Peter Davoren, Augusta Fulcher, Erin Rosenberger, and Jeff Dolan, who signed my termination letter. Verbatim: "Based on the information reviewed, we will not be reversing the decision to terminate your employment with Turner Construction Company. During the review, it determined that local leadership lost confidence in your ability to effectively perform the Human Resources responsibilities of your role. This conclusion was based on concerns regarding your ability to work collaboratively with members of the HR team, and adherence to leadership direction. Additionally, I informed you that inappropriate images were recently discovered on your company-issued device. After considering all of the information available, Turner remains confident that the decision to end your employment was appropriate and consistent with the circumstances presented." Pope also wrote that the review rested on "information gathered during my review and information provided by local leadership and Human Resources representatives who worked directly with you and supported the project." Recently discovered is Turner putting the timing of the device material in writing, after the May 19 decision, which places it inside the after-acquired framework rather than inside the reason for the termination. The email describes a discovery without naming who made it, when, from what, or under what process, and the July 6 demand for the forensic image, hash values, access logs, and chain of custody has now gone a month unanswered, so Turner has put the conclusion in writing and produced none of the foundation for it. The review states its own sources as local leadership and the HR representatives who worked directly with me, which is the group whose account this record disputes. And the email is copied to Jeff Dolan, so the review upholding the termination was circulated to the person who signed it. The signature block on this same email identifies Turner as an Affirmative Action and Equal

Opportunity Employer naming individuals with disabilities, and as a VEVRAA Federal Contractor, which I am flagging, not asserting. Native held.

D. Device Material, After-Acquired Foundation, and the Separation Instruments

D-1 Firm's July 10 settlement letter to Pruzansky, including the iCloud sign-in practice

Jul 10, 2026

Already in the firm's file, sent July 10, 2026 to Jason Pruzansky for Turner. Turner's practice of instructing employees to sign personal iCloud accounts into company devices, with two witnesses identified. Personal content syncing to the device was a byproduct of following Turner's own directive.

D-2 Litigation hold / preservation demand

Jul 6, 2026

Demanded the forensic image, hashes, access logs, and chain of custody for the company cell phone, the only device their after-acquired claim rests on. Turner has produced none of it.

D-3 IT ticket #S486379 (iPad)

Jul 28, 2026

This ticket concerns the iPad, a second company device, not the phone at issue. I engaged their IT through counsel to return the device properly and told them I wanted to make sure I did the right thing. Ten weeks after separation, custody of this second device was still unresolved, while they describe their May review of the phone as complete.

D-4 Apple ID device list and sign-in history screenshots

To capture

My side of the forensic record, to be captured before any account changes are made.

D-5 Overman decision: coaching over termination

Dec 12, 2025

A documented instance of Turner choosing coaching over termination. Goes to whether Turner's real practice supports "would have fired on those grounds alone."

D-6 TWC unemployment determination, granted uncontested

Jun 2026

Benefits were granted uncontested, which is consistent with Turner not asserting misconduct inside a statutory window where its own chargebacks were at stake. I have not seen Turner's submission and I am not asserting its contents. I am requesting my Texas Workforce Commission unemployment claim file to capture exactly what Turner submitted, and Section H should not be leaned on for this point until it comes back.

D-7 Agreement and General Release, unsigned

May 19, 2026

The release attached to the termination letter, five pages, both signature lines blank, and as of August 11 verified page-by-page against the source images rather than described from memory. Its header reads: BY THIS AGREEMENT YOU GIVE UP CERTAIN LEGAL RIGHTS. PLEASE CONSULT WITH AN ATTORNEY BEFORE YOU SIGN IT. Paragraph 1 sets the termination effective May 19, 2026 and states COBRA coverage ends May 31, 2026; paragraph 1(b) recites that I have received all wages, benefits and payments of any kind to which I may be entitled, a recital Turner drafted while the assignment pay claimed at B-20 remained unpaid, and one that binds nobody because I never signed. Paragraph 3 sets the separation pay, the grossed-up COBRA, and outplacement through Vantage Point, conditioned on signing within twenty-one days. Paragraph 4 is a waiver, release and PROMISE NOT TO SUE that expressly names the ADEA, Title VII, the Americans with Disabilities Act, WARN, FMLA, ERISA and the Civil Rights Act, and also the Texas Labor Code including Chapter 21, the Texas Anti-Retaliation Act, and the Texas Payday Law, which is Turner's own instrument naming the state claims this record supports, and states I may still file an agency charge but waive the right to receive money from it. The ADEA recital is on the face of the paragraph, which is what the revocation-period point in Section H turns on. Paragraph 4(c) defines the released related persons as parents, subsidiaries, affiliates and divisions and does not name co-venturers, which bears on naming CTS LoneStar and its member firms separately. Paragraph 6 sets the twenty-one day review period, which ran to about June 9. Paragraph 7 contains no revocation clause, and it makes the agreement effective on Turner's receipt of my signed copy rather than on any counter-signature, although the instrument does carry a company execution block, which is the contrast D-8 draws with the arbitration agreement, which has none. Paragraph 2 requires that I retain no copies, duplicates, reproductions, or excerpts of company material. Paragraph 5 bars me from conferring with any current or former employee about commencing legal action, but it carries an express proviso that nothing in the Agreement prohibits cooperating with the EEOC or another federal, state or local agency, so it is narrower than my August 6 description of it, and cooperation with the agency by Meghan Davis, Tandee Butler, or Dan Blanton would sit inside the carve-out; I am correcting my own earlier characterization here because an overstated bar is an avoidable credibility hit. Paragraph 8 is confidentiality and non-disparagement, with carve-outs for NLRA Section 7 activity, NLRB charges, SEC and SOX whistleblower reporting, and truthful statements; paragraph 8(b) is a neutral-reference commitment, employment confirmation and dates only, which is the same neutral reference Turner has already offered. Paragraph 9's survival clause lists confidentiality, trade-secret, non-solicit and restrictive-covenant agreements and does not list arbitration. Paragraph 12 is the remedies clause. On breach of paragraphs 2, 4, 5, 8, 9, 10 or 11 it lets Turner stop and recover the separation payments, all but one day's pay, and recover its reasonable attorney fees. Paragraph 10 bars soliciting or hiring Turner employees for six months. Paragraph 11 covers confidential and proprietary information and carries the Defend Trade Secrets Act immunity notice, which is Turner's own written acknowledgment under 18 U.S.C. section 1833(b) that disclosure made in confidence to an attorney solely to report or investigate a suspected violation of law is protected. Paragraph 13 forecloses reliance on anything not written into it. Paragraph 17 states that the Agreement may not be used or introduced as evidence in any legal proceeding except to enforce its terms; the note at Section H's severance-tender discussion addresses

what that clause can and cannot do. I did not sign it and the window has passed, so none of it binds me. It matters to what any renewed offer would be buying.

D-8 Mutual arbitration agreement, full instrument

Oct 13, 2025

The full agreement, now on its face rather than through a summary. Section 3(e) makes ERISA plan-benefit claims Covered Claims. Section 4(e) reads, verbatim, any claim that is expressly excluded from arbitration by statute or other applicable law that is not preempted by the Federal Arbitration Act. Section 6 directs any claim not fully resolved at the agency into arbitration. Section 7 makes every gateway fight a public court proceeding while Section 9 seals the arbitration itself. Section 14 makes continued employment the consent. There is no delegation clause anywhere in the instrument and no limitation window of any kind. The signature block carries my e-signature alone, dated October 13, 2025, with no company signature line anywhere on the document, while the May 19 letter promises Turner will counter-sign the release, so Turner's own paperwork distinguishes the documents it intends to execute mutually. Section H works through what these sections mean for forum and formation.

D-9 Pruzansky letter to Gilbert re Baxley v. Turner

Jul 24, 2026

Indexed by reference. Turner's counsel describes the device material in detail in this letter, which is what Section H means when it contrasts detailed description against the July 6 demand for the forensic image, hash values, access logs, and chain of custody going unanswered. The letter is settlement correspondence and sits inside Rule 408. Your office holds it, not me. I do not restate what it says about the device material, here or anywhere. Section H works through the other positions it takes, because those are the ones this record can test.

D-10 Turner published Human Rights Policy, hash-archived

Captured Aug 4, 2026

Turner's published policy, captured and archived on August 4, 2026 with a SHA-256 hash so the version in the packet is provably the version that was public on that date, before any litigation posture could change it. The hash value travels with the file. I am not asserting a claim on this document. I am preserving what the company says about itself in public alongside the Affirmative Action and Equal Opportunity Employer language naming individuals with disabilities, and the VEVRAA Federal Contractor line, that appear in Turner's own email signature blocks at C-6.

D-11 Demand letter from my counsel to Turner

Jun 15, 2026

The opening demand, sent by Rob Wiley P.C. on June 15, twenty-seven days after the termination and ten days after the Pope review closed the internal door at C-6. Your office holds it. It belongs in this index because it fixes the start of the negotiation lane and because everything Turner has written since then, the July 24 letter at D-9 and whatever position statement follows the charge, is a response to it. My own July 6

preservation demand at D-2 sits in the same window but runs the other way, from me to them, and I am naming the direction so the two are not blurred. It is settlement correspondence and sits inside Rule 408 alongside D-1 and D-9.

D-12 EEOC charge, draft and current version

Jul 7 and Jul 31, 2026

Your office drafted the charge on July 7 and sent the current version on July 31. Two open items gate my signature and both are legal judgments for you rather than facts for me: whether the charge names CTS LoneStar or the member firms alongside Turner, which is the respondent question B-27, B-32 and B-35 all feed, and how the disability is described given the difference between what my treating physician has documented at A-13 and what Turner was told, which Section H works through. I am ready to notarize on your word, and there are four things on the form itself that have to be right before I sign anything, because I sign it under penalty of perjury. The dates box on the July 7 draft reads Earliest January, 2026 and Latest January 1, 2026. The latest act is the May 19 termination, and as drafted the box states a latest date earlier than every 2026 act this charge relies on, and its own 180-day window closed June 30, 2026. The Year of Birth field carries my full date of birth rather than the year. The second respondent block has a street address filled in with no entity name above it, which is the CTS LoneStar question sitting half-answered on the form. And my street address should be checked against the number your June 5 chronology carries, because the two do not match. If the July 31 version already corrects these, disregard this; I am flagging them from the July 7 draft I have in hand.

D-13 Work files I forwarded to myself after termination, disclosed here rather than left for Turner to raise

May 21, 2026

A custody matter concerning company files in my possession after separation has been disclosed to you in full, separately, in a document captioned Privileged Attorney-Client Communication, Custody Disclosure, which is not part of this exhibit set and is not indexed here. It is being handled at your direction. This row exists so the index is complete and so nobody later says the subject was omitted. The detail, the dates, the file list, the third-party data question and my proposed handling are all in that separate communication, and I put them there rather than here because this index is written to be read, quoted and produced, and that one is not.

E. Phone Image Exports, Held Ready and Uploaded on Request

These are screenshot exports from my phone, in date order. Several also appear as exhibits above and the cross-reference is in the row. On the count, so nobody has to work it out: the eighty is a count of index entries, and because five of these nine rows are the same documents as rows in Sections A and B, and C-1 points at B-2 and B-29 rather than being a document of its own, the distinct-document count is about seventy-four. Files upload on request.

E-1 Jeff Dolan text thread, direct (also A-6)

Feb 23, 2026

He writes that Corina let him know I texted her and left my work phone at the office, that I have been doing great things under a difficult situation, that he has an interest in helping navigate this issue, and to stay positive. A follow-up notes that Corina and Sydney wanted to make sure I was ok. His own written knowledge of the withdrawal episode, reported to him by Corina, four days before his final-warning call. This is the afternoon of the missed Lyra session at A-14.

E-2 Texts to Rayne and to my mother (also A-11)

Feb 27, 2026, evening

The night of the warning call: Jeff put me on a final warning, and, my mind will never work like a normal person. These fix the warning date, put Mr. Dolan personally on the call, and are state-of-mind evidence written before any dispute existed.

E-3 Rayne thread (also A-11)

Feb 28, 2026, morning to 2:19 PM

Scared to leave my hotel, over an hour in my car unable to go anywhere, then, I asked for our on-site mental health counsel, and an appointment set for Monday. Active help-seeking the day after the warning, alongside the Goings thread at A-8.

E-4 The employee-addresses thread

Mar 6, 2026

Mr. Dolan: I appreciate you defending the privacy of the employee data. Mr. Dolan again, in a message marked edited: Coaching for garrett is to start with yes and then figure out the how. Corina: I directed Garrett to pause until I could get an answer for him. The conduct later framed as a performance problem, praised in writing by the man who signed the termination, and the pause was my manager's own directive in her own words.

E-5 Dolan texts during the Omaha trip

Mar 10-11, 2026

Including, we will be meeting in the lobby at 8:45. These place us together on the trip where the in-person disclosure happened, and it is the same trip that kept me out of the March 10 telehealth session at A-15.

E-6 Fatality-day texts (the Mar 21 text also at A-6, the recognition at B-7)

Mar 20-21, 2026

My texts coordinating coverage while managing the emergency, 911 on site, and Mr. Dolan's same-day group message thanking me for supporting our leaders and employees during a horrible situation, then his next-day check on whether I got any rest. His written praise for my crisis performance three weeks after the final warning.

E-7 Camera photo of Joe Glowacki's text (the same exhibit as B-1)

Mid-Apr 2026, date to confirm

"I complimented your engagement and appreciated you asking for assistance with the issue." Inconsistent with the negative-engagement framing, from the man quoted for it.

E-8 Screenshot of my call log

May 7, 2026, captured May 8

Incoming call from Corina, 15 minutes, at 11:32 AM, the day before the Teams availability exchange at B-3 and B-28, and a second incoming call, 7 minutes, at 4:21 PM. The sequence ran phone first, and this screenshot is the foundation for requesting my carrier's call-detail records as my own account records, which should also capture her January 27 call, made the day after the January 26 disclosure, while she was on her Kansas City trip.

E-9 Corina email acknowledging my JV_Holiday_Comparison file

A Friday, date to confirm

Thank you. Could you send it to Andy and cc me on the email. My holiday-schedule work product, received with thanks and routed onward at her direction. Related to the holiday friction at B-8.

F. Witnesses

I have not solicited a statement from anyone on this list and I will not without your direction. Where a row records something a person has said to me, it was said in the ordinary course and before any of this was a legal matter. Jill Lause and Ruthie de la Cruz in particular have not been contacted and should not be until you say so, for the reason A-9 gives.

Meghan Davis

Complained to Kevin Ward about how Corina handled her meeting, which is the first of the two matters at B-10. She has said she would testify.

Dan Blanton

Two separate things. The iCloud sign-in instruction from Turner IT, and his own hostile work environment concern, which he brought to me near the end of my time and which became the April 30 intake meeting at B-36. He can describe how that meeting was conducted. He was reassigned after it. He is not connected to the April Clayco matter at B-30, which involves different people.

Amber Blanton

The same iCloud instruction, independently. She is Dan Blanton's wife.

Tandee Butler

Her May 6 written pushback at B-11 and the ethics complaint she planned.

Brandon Goings

The Feb 28 disclosure and the on-site counselor referral, at A-8.

Joe Glowacki

The false attribution and the compliment he actually gave, at B-1 and E-7.

Gabriel Polanco

The project-side onboarding and relocation support he received from me and Jordyn, at B-21.

Tracy Hagen

My performance and standing through the final week, at B-6 and B-7.

Jake Overman

The December coaching decision at D-5 and the April escalation at C-2.

Tara Ebner, Director of Human Resources, TW Constructors

The cross-member removal we worked in my final week at B-35, and completing my own control at B-32. Both go to the respondent question.

Alex Willis

His statement that the data set I built was one of the best he had seen, at B-18.

Ruthie de la Cruz

I believe she was also there for that exchange in Omaha, at A-9. I am saying believe on purpose: I am not certain, I have not contacted her, and I do not want her recollection shaped by anyone before she gives it in her own words. The trip roster in Section G will confirm whether she was there.

Jill Lause

Two separate things on the same trip, which makes her the witness I would want first. My disclosure of autism, depression, and anxiety to her on the drive. And she was roughly ten feet away, after the session and before the restaurant, when I apologized to Jeff Dolan, when he teared up and told me he was proud, and when I told him my brain works differently and asked him to help me bridge the gap, at A-9. She may have been talking to someone at the time; what she took in is hers to say. She reports directly to Corina Murguia, which means she is Turner's witness, not mine.

Jordyn Waters

The supervisor-training scheduling at B-5, the Polanco onboarding at B-21, the Sandy memo chain at B-23, the routing described at B-26, and the workplace-violence assessment I shared with her on April 29 at B-30. She is a named custodian inside the July 6 hold, so her threads are already within preservation scope.

Margarita Villagran

She completed the same company Owner's Manual template on March 11, at A-12, which goes to the manual being a Turner-run program rather than something I produced on my own initiative.

David Peightal, BuildWell Health

The on-site counselor referral Brandon Goings sent me on February 28 and the call that followed, at A-8. BuildWell holds its own notes of it.

G. Employer-held items for discovery

My Turner mailbox and calendar

The most urgent item on this list. Six exhibits in Section B and two in Section C exist today only as my own account plus a search record. B-37 is the dated record of what a search of this mailbox returned on May 19 and is what Turner's production should be measured against. For two of the eight, plus Kevin Ward's April 21 reply, I can name the Outlook identifier a demand should call out: AABat_nSAAA for the February 17 transmittal, AACBr4PhAAA for the April 20 escalation, and AACBrxQLAAA for Kevin Ward's April 21 reply.

The company cell phone

Forensic image, hashes, access logs, chain of custody, and the iCloud sign-in configuration.

The Feb 27 warning documentation

With its creation metadata. If the contemporaneous write-up was created later, that matters.

The June 5 review file

Together with Rodney Pope's notes behind the C-6 email.

The Meghan Davis email to Kevin Ward

Her complaint about how Corina handled her meeting.

Tandee Butler's ethics complaint

The complaint itself, which B-11 does not contain.

The Teams message container

With edit history, which is what shows the May 7 praise message was edited.

The Apr 30 DB Intake Discussion recording, transcript, and human notes, at B-36

This is the Dan Blanton intake at B-36. The auto-generated summary uses the phrase legally hostile workplace, and the original has to be obtained before anyone relies on that wording. The recording is also the neutral record of who ran that meeting.

Corina's late January travel and expense records

The Kansas City flight, which fixes the date of her January 27 call to me, the day after the January 26 written disclosure.

My January 26 written disclosure to Corina Murguia

The email whose header dates the disclosure that preceded her January 27 call at A-5. Turner’s copy is in her mailbox. Whether my own accounts still hold one is an answer I owe you, and until I give it this file claims the email’s existence and its date, not possession of it.

My CTS LoneStar mailbox and the May 19 acknowledgment dashboard emails

A CTS LoneStar mailbox in my name is itself joint-employer evidence.

The CTS LoneStar Internship Experience PowerPoint

In Corina Murguia's OneDrive, with version history and permissions.

The Feb 26 calendar entry titled Discussion with Corina

One day before the verbal final warning.

The Teams presence-setting and audit history for my account

Requested from onboarding through May 19, 2026, not stopping at May 8. The period before May 8 shows the setting was unchanged for seven months without comment. The eleven days after May 8 are what Turner will say I did or did not do about the directive, and I would rather that record be produced than characterized.

The CTS LoneStar Google Workspace records

Including Google Chat and Gemini meeting notes, showing project communications ran on the mandated Google stack.

The native Feb 9 Aligning on JV Execution email

The B-29 original.

The Apr 22-23 CTS ER Concern - Alignment thread

With the Ward and Murguia replies.

The CTS.AC.23.docx workplace-violence assessment

And its transmission record.

My four written concern-raisings referenced in the May 4 memo

B-29 is the first. The other three are in the mailbox.

The May 13-18 Action Required: CTS Interim Awareness thread

The rollout of the interim control at B-32.

Alex Saleh's all-CTS directive email

On City of Haskell communications, the origin of B-25.

The full green-light request thread

Showing the executives' non-response to the interim control.

The Apps Script landing page, dashboard backend, and notification email records

The system behind B-32.

The separation approvals

Who signed off, and when.

The February 27 HR team meeting: calendar invite, attendee list, and any notes

Turner now says roughly ten people were present and that the warning was documented contemporaneously. That meeting is the primary ground in its July 24 letter and there is no record of it anywhere in my files. The invite fixes who was there, and I want that list for a second reason Turner has not thought about. I believe the room I apologized to in Omaha on the March 10 to 12 trip, at A-9, was substantially the same group. If it was, then the witnesses Turner would call to say what I said also heard me take responsibility for it, eleven to thirteen days later, without being asked to. That is why I am asking for the roster of both rooms.

The identity of the decision-maker, and the separation approval chain with dates

Turner has represented that the decision-maker had no knowledge of any autism, depression or anxiety diagnosis. It has to name that person before that sentence means anything. Jeff Dolan signed the letter; if he is the decision-maker, A-6, A-9, E-1 and E-6 answer it, and if he is not, Burrell governs whatever the actual decision-maker knew.

The documentation of the extensive coaching Turner says it provided

The July 24 letter states Turner coached me extensively and that my performance did not improve. That is a second body of records Turner has now said exists. Same request as the February 27 write-up: the documents and their creation metadata.

Whether the Owner's Manual or any disability information moved past Corina Murguia

Turner has represented in writing that my supervisor told no one else. Her mailbox, her forwards, and the manual's access history are what confirm or refute that, and the answer decides the knowledge element.

My supervisor's own file on me, including any notes prepared after May 19

If a contemporaneous February 27 write-up exists, it lives here. If the only write-up was created later, the metadata says so, and that is the point.

One disclosure I am making to you rather than sitting on. While I was employed and acting in my HR role I was a recipient on a Turner-internal thread that carries an attorney-client privilege marking. I have not opened it since separation, have not used it, have not shared it, and am not describing its contents here or anywhere. I am telling you it exists because you need to know before Turner does, and because the right handling of a privileged document in a former employee's possession is a decision for you and opposing counsel, not for me. Treat this as notice and quarantine.

H. Research and Authorities for the Call

Every case cited here was checked against the opinion text itself instead of a secondary source, and the statutes, rules, and regulations were checked against their current text. It is all keyed to the exhibits above. These are my notes, for your judgment. Where a point rests on my own reading of the arbitration agreement rather than your eyes on the instrument, I say so and ask you to confirm it on the document’s face.

After-acquired evidence and the three writings.

The burden is Turner’s, and it is the would-have-fired standard rather than could-have. McKennon v. Nashville Banner Publishing Co., 513 U.S. 352, 362-63 (1995); Shattuck v. Kinetic Concepts, 49 F.3d 1106, 1108-09 (5th Cir. 1995); Patterson v. P.H.P. Healthcare, 90 F.3d 927, 934-35 (5th Cir. 1996). The district decision limiting remedies did so only because that plaintiff conceded intent and offered no comparator evidence, the inverse of this record. Weeks v. Coury, 951 F. Supp. 1264, 1274-75 (S.D. Tex. 1996). Texas has adopted the same framework, but the Texas cases are a workers’ compensation retaliation line rather than a Chapter 21 line, and I want that on the page rather than papered over. Johnson v. Bethesda Lutheran Homes, 935 S.W.2d 235, 237-38 (Tex. App. Houston [1st Dist.] 1996) applied the McKennon standard, and it is a Labor Code section 451 case rather than a Chapter 21 case, so I am correcting my own citation of it here too. A second correction I am making rather than leaving: Montiel v. Trico Technologies Corp., 941 S.W.2d 263 (Tex. App. Corpus Christi 1996) was cited here for that proposition and does not support it. The court of appeals declined to adopt the after-acquired evidence doctrine, and it was a workers' compensation retaliation case rather than a Chapter 21 case. The Texas Supreme Court then reversed and adopted the doctrine as a limitation on recovery, Trico Technologies Corp. v. Montiel, 949 S.W.2d 308 (Tex. 1997). Neither one carries the Chapter 21 point. The bridge to Chapter 21 is statutory rather than case law. Section 21.001(1) makes the Act the state vehicle for federal policy, so analogous federal statutes and the cases reading them guide it. Quantum Chemical Corp. v. Toennies, 47 S.W.3d 473, 476 (Tex. 2001). No Texas Supreme Court case has yet applied after-acquired evidence to a Chapter 21 claim, and I would rather say that than imply otherwise. The EEOC’s after-acquired-evidence guidance adds two points worth using: the standard is would have fired, not could have, and compensatory damages for emotional harm are not cut off at the claimed discovery date the way back pay is.

> **Verification note, August 11.** One correction to the paragraph above, checked against the opinion itself the same way as the rest of this section. The Texas Supreme Court affirmed the court of appeals' judgment remanding the case to the trial court; it did not reverse it. What it rejected was the court of appeals' broader position that the after-acquired-evidence doctrine has no application at all, and it adopted the narrower rule, following McKennon, that the doctrine operates only as a limitation on recovery. So where the paragraph above says the Court reversed, read affirmed: the doctrinal shift is real, the judgment reversal is not.

The record answer runs through B-14. The May 19 letter, now in the packet, states no reason at all in writing. It says as discussed with you today and itself offers two months of separation pay, grossed-up COBRA, and outplacement, conditioned on a general release I never signed. Performance and availability were stated orally in the meeting. The June 5 review email is the first written statement of grounds, lost confidence in my ability to perform the role based on collaboration and adherence concerns, and it adds the device material. The July 24 letter, D-9, shifts again to immediate grounds measured in days. The company’s first writing contains no ground and every later writing contradicts the one before, D-5 shows coaching chosen over termination in December, and D-6 raises, pending my Texas Workforce Commission unemployment claim file, the question of what misconduct if any Turner asserted to the Commission with Turner’s own chargebacks at stake. The pretext cases in this circuit turn on how an employer’s paper matches its story. In Burton v. Freescale Semiconductor, Inc., 798 F.3d 222, 236-37 (5th Cir. 2015), the court

reversed summary judgment for the employer because a sudden and unprecedented campaign to document an employee's deficiencies, in order to justify a decision already made, can itself raise an inference of pretext, a rule it drew from Goudeau v. National Oilwell Varco, L.P., 793 F.3d 470, 476-77 (5th Cir. 2015), where the employer manufactured steps in its own disciplinary policy by papering the file after deciding to fire. My file is the mirror image of that and it lands in the same place. There was no campaign because there was no paper at all. The February 27 final warning was delivered by phone and never put in writing, which is why Section G asks for the write-up and its creation metadata; a warning written up after the fact raises the same problem Goudeau describes, from the other direction. What the file does hold, from February through my final week, is written praise from Turner people, at B-1, B-6, B-7, B-13, B-30, E-4 and E-6, and my own contemporaneous cooperation at B-4 and B-9. Burton also holds at 233 that purported post-decision poor performance is not evidence of a legitimate reason for the termination, which is where the device material sits. And Burton applies Burrell v. Dr. Pepper/Seven Up Bottling Group, Inc., 482 F.3d 408, 412 (5th Cir. 2007) for the point that if the decisionmaker did not know of the conduct when he decided, offering it as the reason is false, which permits a finding of pretext. C-6 says local leadership lost confidence in my ability to perform the Human Resources responsibilities of my role, and rests that conclusion on concerns about my ability to work collaboratively with the HR team and adherence to leadership direction. What Turner has to produce is what the decisionmaker knew and when he knew it. On the collaboration ground specifically there is a recorded answer. B-36 is the April 30 intake an employee brought to me, nineteen days before the termination, which my supervisor joined late and then ran herself. That session was recorded with auto-generated notes on the client-mandated Google stack, so the neutral record of who was collaborative in that room is in Turner's own systems, not in my recollection.

Patrick v. Ridge, 394 F.3d 311, 317 (5th Cir. 2004) is the forward-looking one: whatever Turner ends up articulating has to be specific enough to test. The position statement will be the next writing, and Miller v. Raytheon, 716 F.3d 138, 144 (5th Cir. 2013) is why the order of the first three matters.

The order the writings came in is the argument. Turner has put its reasons in writing three times and is about to do it a fourth. First, the May 19 termination letter at B-14, which states no ground at all and says only as discussed with you today, while tendering two months of pay. Second, the June 5 Pope email at C-6, seventeen days later and the first written statement of any ground: lost confidence in my ability to perform the Human Resources responsibilities of my role, based on concerns about collaboration with the HR team and adherence to leadership direction, plus inappropriate images recently discovered. Third, the July 24 Pruzansky letter at D-9, which moves again. Fourth will be the EEOC position statement, and Miller v. Raytheon, 716 F.3d at 144, makes an erroneous statement in that document circumstantial evidence a jury may weigh. Whatever Turner writes next has to reconcile with a letter that gave no ground, an email whose only device language is recently discovered, and a letter that moved again. If the position statement adds a ground, that ground is new after three chances. If it repeats the June 5 grounds, it has to survive B-36, which is the recorded April 30 meeting where the collaboration ground was actually my supervisor taking over an intake an employee brought to me. If it leans on the device material, recently discovered is Turner's own word for after the decision, and the July 6 retention notice at D-2 has gone a month without producing the image, hashes, access logs or chain of custody.

What Turner has committed to in writing, and what each commitment costs it. The July 24 letter at D-9 is the first time Turner has argued its own case at length. I am not restating what it says about the device material, here or anywhere. What follows is only the positions it took that this record can test, because a position in a letter is a position a witness has to hold under oath.

One. It states that the February 27 warning was documented contemporaneously. I never received it in writing and Section G already asks for that document and its creation metadata. Turner has now put in writing that a contemporaneous record exists. If it exists and the metadata shows it was created later, that is the Goudeau problem exactly. If it does not exist, the representation was wrong. Either way the file answers it, not me and not them.

Two. It supplies a ground that appears in none of Turner's earlier writings: language I used in an HR team meeting on or before February 27, in front of roughly ten people. That ground is absent from the May 19 letter, which states no ground, and absent from the June 5 Pope email at C-6, which Pope wrote after considering, in his words, all of the information available. This is the third writing and the third different account. It also names about ten witnesses to a meeting, and Section G asks Turner for the invite and attendee list that fixes who they were. On the underlying remark I am not going to litigate it in an index. What the record shows is what I did about it: eleven to thirteen days later I apologized to that room in person, at A-9, and Mr. Dolan's response was to tear up and tell me he was proud. Turner did not raise it again in writing for another five months, and when it did, it raised it to a lawyer.

Three. It states that the decision-maker had no knowledge of any autism, depression or anxiety diagnosis, that I disclosed on a single occasion to my immediate supervisor about three months earlier, and that she told no one else. Turner therefore has to name its decision-maker. Jeff Dolan signed the termination letter. Mr. Dolan delivered the February 27 warning call himself, texted me on February 23 about the difficult situation I was in, at A-6 and E-1, asked in writing on March 21 whether I had gotten any rest, at E-6, and was in Omaha on the March 10 trip where I disclosed to him in person, at A-9. If Mr. Dolan is the decision-maker, the no-knowledge position is answered by Turner's own texts and by A-9. On that trip I apologized to the room, then told Mr. Dolan I was sorry I had put him in that position, and he teared up and said he was proud of me. In that same moment I told him my brain works differently and asked him to help me bridge the gap. I would not expect a person to forget a conversation in which he cried, and he was not alone with me for it. Jill Lause was roughly ten feet away and what she took in is hers to say. Turner's July 24 position is that the disclosure went to one supervisor and no further. It went to the man who signed the letter, on a company training trip, with another of Turner's HR Managers nearby. If he is not, Turner has to say who is, and Burrell applies to whatever that person did or did not know. The single-occasion characterization is answered by A-2, A-5, A-9 and B-33. And whether the disclosure travelled beyond my supervisor is now a question Turner has answered in writing, which makes her mail file worth exactly what Section G says it is worth.

Four. It states that Turner referred me to its employee assistance program and that I acknowledged the referral in writing as very helpful. I will let that sentence sit next to A-3, which is Lyra's own timestamped record of me registering myself at 5:42 PM on February 16, the same evening I finalized the manual. I did not wait for a referral. If Turner is also claiming it referred me, then Turner knew, and the two accounts

cannot both stand. And a company that says it accommodated a condition has said it perceived one, which is where Cannon puts the regarded-as question. The same paragraph says that when I shared how I wished to be managed, Turner honored it. That is Turner conceding the request that triggers the interactive-process duty under Loulseged, and A-14, A-15 and B-28 are what honoring it actually produced.

Five. It states I mishandled two sensitive employee-relations matters in the weeks before separation. Two, not several. B-10 and B-36 are the candidates and both trace to my supervisor's handling rather than mine, and B-36 is the one with a recording in Turner's own systems. Turner has now committed to a number, which means it has to pick the two and defend both.

Six. It states I was resistant to coaching. The written disclosure at A-1 is a direct request for rigorous coaching, made on Turner's own program template, and B-4 and B-9 are the opposite of resistance in my own contemporaneous words. It also states Turner coached me extensively. That is another body of documentation Turner has now said exists, and Section G should ask for it with the same metadata request.

Seven. On the Stored Communications Act it makes a forensic representation about the device, which I do not restate here. That representation is provable or disprovable from the image, the hashes and the access logs that the July 6 retention notice at D-2 asked for and that have not been produced in a month. Turner is asserting a forensic fact while withholding the forensics. On the law itself we agree, which is why D-1 matters: it is not about me, it is about whether Turner instructed employees to sign personal accounts into company devices, and there are two witnesses to that in Section F.

Eight. It states the arbitration agreement does not require a company signature. D-8 is in the packet so you can hold that against the instrument, and against the May 19 letter's own promise that Turner would counter-sign the release.

Nine. Their letter answers a July 14 letter from your office that I do not have and that is not in my file. I am asking for it so this index is complete, because everything Turner wrote on July 24 is a response to it and I should not be reading their side of a conversation without ours.

Ten, and this one needs an answer from us instead of from a document. The letter says twice that I do not contest the after-acquired cap. I do contest it. McKennon puts the burden on Turner to prove it would have terminated on that ground alone, and D-5 shows Turner choosing coaching over termination in December, while D-6 raises, pending my claim file, whether Turner declined to assert any misconduct to the Texas Workforce Commission with its own chargebacks at stake. Silence is being converted into concession in a settlement letter, and it should be answered in writing before it is repeated in a position statement. A company that stated performance and availability orally while tendering two months of severance in a letter that gives no ground at all cannot easily prove it would have fired on the spot for something else. And if anyone at Turner had the material before May 19 and did not rely on it, it is not after-acquired evidence at all, which is one more reason the access logs and the June 5 review file listed in Section G matter.

The stakes of this fight are the whole economic case: if the defense holds, back pay runs about one week to the claimed discovery date; if it fails, back pay runs from separation at about 5,844 dollars a week.

Expect them to argue the week is worth 2,400 and expect the stubs to answer it. At 5,844 a week the back pay is about 66,000 dollars as of August 6 and crosses 80,000 on about August 23. At their 2,400 it is about 27,000. Two things belong next to that number so nobody has to ask. First, mitigation. I am keeping a log of every application, interview and offer from May 19 forward and it comes to you on request; I know it is the first interrogatory and I would rather hand it over than answer it. Second, the composition. The weekly figure includes the Living Allowance, travel incentive and Auto Allowance from the B-20 stubs. Turner will argue those were assignment-contingent and point at B-19, where another employee's allowance is tied to an assignment running to November 2028, and Turner's own two-month severance figure of 20,800 dollars reflects base salary alone. I am putting both readings in front of you instead of picking the one I like.

Acquisition and authentication, stated precisely.

On the Stored Communications Act you already have the law, so I will give you the fact instead. Garcia v. City of Laredo, 702 F.3d 788 (5th Cir. 2012) puts the device side out of reach and leaves the cloud side, which is the claim your July 10 letter asserts. The fact that carries it is D-1: Turner’s own IT instructed employees to sign personal accounts into company devices, and there are two witnesses to that. Lazette v. Kulmatycki, 949 F. Supp. 2d 748 (N.D. Ohio 2013) and Pure Power Boot Camp v. Warrior Fitness Boot Camp, 587 F. Supp. 2d 548 (S.D.N.Y. 2008) are the closest analogues I found and both are out of circuit. On remedies, read the Fourth Circuit narrowly and do not overclaim: Van Alstyne v. Electronic Scriptorium, Ltd., 560 F.3d 199, 201-02, 205-08, 209 (4th Cir. 2009) holds that statutory damages under the Act require proof of actual damages, following Doe v. Chao, 540 U.S. 614 (2004), while punitive damages and attorney fees do not. Van Alstyne is out of circuit and the Fifth Circuit has not adopted it, so treat the punitive-and-fees path as the available one and do not assume statutory damages come free.

On foundation, the July 6 demand for the forensic image, hash values, access logs, and chain of custody has produced nothing, D-2, while the July 24 letter at D-9 describes the material in detail. Without a verified image and hashes there is no self-authentication path under Federal Rule of Evidence 902(14), which requires a certification by a qualified person that the data was authenticated by a process of digital identification. Hash comparison is the Advisory Committee's example rather than the rule's only permitted method, so I am not overstating it. The point does not need the overstatement: Turner has offered no certification by any qualified person and no process of digital identification of any kind, which fails the rule on its own terms whichever method it eventually claims. The rule also requires that the certification satisfy Rule 902(11) or (12) and that the proponent meet Rule 902(11) notice, and neither has happened. So anything they try to use rides on live-witness authentication under Rule 901 with the custody gap open on cross. On the date itself, C-6 says only recently discovered and Turner has asserted a discovery date within roughly a week of the separation, so that is their own outer edge and it is the number the back-pay cutoff argument runs on. On spoliation: Rule 37(e)(1) needs only prejudice from lost electronic information and yields curative measures, while the adverse-inference tier under 37(e)(2) requires intent to deprive, and there is no present record of destruction, so this is a conditional tool that the preservation posture keeps loaded rather than a lever to pull today. Once the charge is filed, 29 C.F.R. section 1602.14 independently obligates preservation of all relevant personnel records until final disposition, so the filing itself upgrades the preservation duty from demand letter to regulation.

The May offer and the July letter are different evidence.

The severance tender inside the May 19 termination letter predates any dispute; my June 2 email to Mr. Davoren at C-5 references the live severance deadline in my own contemporaneous words. That tender is ordinary evidence of how Turner valued the separation on the day it stated performance and availability out loud and put neither in writing, and it is not a compromise offer under Rule 408 because there was no claim to compromise. The July 24 letter, D-9, is settlement correspondence and stays inside Rule 408. Keeping those two documents in separate lanes preserves the May tender for the after-acquired and severance fights without touching the negotiation privilege.

> **Verification note, August 11.** One clause complicates this and I am naming it before Turner does. Paragraph 17 of the unsigned Release says the Agreement may not be used or introduced as evidence in any legal proceeding except to enforce its terms, and Turner should be expected to invoke it against any use of the May 19 tender. The answer has two parts: I never executed the instrument, and an unsigned draft cannot impose an evidentiary restriction on a non-signatory; and the tender's existence, timing, and amount are stated in the termination letter itself, a separate document that paragraph 17 does not purport to reach, so Rule 408 rather than a clause in a draft nobody signed governs admissibility. This is a fight to prepare for, not to assume away.

Notice and accommodation.

An employee requesting accommodation does not have to mention the ADA or use the phrase reasonable accommodation, and plain English will suffice, so long as the adjustment is linked to a condition. EEOC v. Chevron Phillips Chemical Co., 570 F.3d 606, 621 (5th Cir. 2009). Taylor v. Principal Financial Group, Inc., 93 F.3d 155, 165 (5th Cir. 1996) is cited in Chevron Phillips for the employee's initial burden and not for this rule, and it runs against me; it is treated below under authority that runs against us. That rule answers the vocabulary point.

The three things always moved together. In January, in the car with Corina, I named autism, depression, and anxiety. In March, in the car with Jill Lause, I named all three again. The Owner's Manual in February is the written record of that January conversation and uses the plain words I used out loud, we discussed that I am on the spectrum, and with Jeff Dolan on the same March trip I described how my mind works instead of reciting a list. Under Chevron Phillips that variance is exactly what the rule permits. The Vytalus record documents depression and anxiety, along with bipolar disorder and ADHD, back to June 2024. So depression and anxiety are both what Turner was told and what my treating physician has documented, and the overlap is not a matter of my characterization. The law requires notice of a condition and a linked request, not diagnostic precision.

On the three conditions, and on autism specifically, you should have this straight from me rather than discover it. My identification is my own and no clinician has evaluated me for it, so I do not want the coverage element resting on it. Coverage rests on the Vytalus record, which is a treating physician documenting bipolar disorder, ADHD, anxiety, and depressive disorder since June 2024, and on the insomnia in that same record. Autism, together with the depression and anxiety disclosed alongside it, does its work on the notice side, because what Turner knew is what I told it, and on the regarded-as prong,

where the question is what the employer perceived and acted on, not what a chart says. Cannon v. Jacobs Field Services North America, Inc., 813 F.3d 586, 591-92 (5th Cir. 2016) is the circuit's statement of it. The Act now reaches anyone regarded as having an actual or perceived impairment, in the statute's words, whether or not the impairment limits or is perceived to limit a major life activity, 42 U.S.C. sections 12102(1)(C) and (3)(A), and Cannon quotes the regulation's view that unfounded concerns, mistaken beliefs, fears, myths, or prejudice about disabilities are just as disabling as actual impairments. Cannon also points at Burton v. Freescale Semiconductor, Inc., 798 F.3d 222, 231 (5th Cir. 2015), which found the employer regarded the plaintiff as disabled because the documentation supporting her termination tied complaints about her conduct to her asserted medical needs. That is the shape of this case, and it is why a formal diagnosis is not what the prong turns on. I am arranging a formal adult evaluation now and expect to have it started within days. I would rather not swear to a diagnosis I do not yet have on paper, and I would rather not wait on it either, so tell me which way you want the charge to read and I will follow that, provided the description is one I can swear is true. The underlying facts do not change either way. The Vytalus record documents what it documents, the depression and anxiety among it, and my autism identification is my own and unevaluated. What I am asking you to choose is which of those true descriptions the charge leads with, not what I attest to. The charge-description confirmation is already queued to you. In Von Drasek v. Burwell, 121 F. Supp. 3d 143 (D.D.C. 2015), an out-of-circuit district case, the agency's own reviewing physician endorsed written instructions and additional time for an employee with bipolar disorder. I am naming it against myself in the same breath. The agency had already provided written instructions and extra time, terminated her anyway, and won summary judgment on the discrimination and retaliation claims, with only the reassignment claim surviving. It is useful for what a reviewing physician will call reasonable and useless for outcome. The Fifth Circuit held in May 2025 that delay in providing an accommodation can itself support a failure-to-accommodate claim on the facts there. Strife v. Aldine Independent School District, 138 F.4th 237 (5th Cir. 2025).

Sleep is its own track here and it may be the cleanest one. The ADA names sleeping as a major life activity in the statute itself, 42 U.S.C. section 12102(2)(A), so a sleep impairment does not have to borrow coverage from anything else. My insomnia is in my medical record from June 19, 2024, months before Turner hired me, which makes it documented, longstanding, and untouched by this dispute. Turner knew. I told colleagues routinely that I only get a few hours a night, and Mr. Dolan put his own knowledge of it in writing on March 21 when he asked whether I got any rest last night, which is at A-6 and E-6. That matters because availability and the Teams status indicator were named as a ground in the termination meeting at B-34, and the record behind that ground is at B-28. An off-hours work pattern is what a documented sleep impairment looks like on a calendar. If Turner terminated in part for a manifestation of an impairment it had been told about and had written knowledge of, that is not neutral performance management. It is also the accommodation an interactive process would have produced in one conversation, flexible or asynchronous hours, and no one at Turner ever started that conversation.

Loulseged v. Akzo Nobel, 178 F.3d 731, 735-36 (5th Cir. 1999) is the one I would want you to see both halves of, because the employer won it when the breakdown traced to the employee. There were exchanges, and I want you to see them rather than have Turner produce them: Corina raised depression and asked what I needed on January 27, the day after my written disclosure of January 26, at A-5, and

Brandon Goings answered on February 28 and sent the BuildWell contact, at A-8. What nobody at Turner did was convert any of that into an accommodation discussion. The January 27 call is the closest the company came, and it produced nothing in writing and no follow-up. Then I put it in writing again. I sent Corina the completed Owner's Manual on February 17, in the format Turner's own program asked for, and no one answered it. Not Corina, not anyone else at Turner, not then and not since. Ten days after that silence I got a verbal final warning that was never put in writing. That is the sequence Cutrera describes and it is the whole of Turner's engagement with a written request: a call in January that went nowhere, and then nothing at all. There was no breakdown traceable to me because there was never a process for me to walk away from. The delivered sequence runs from A-1 through the Omaha disclosure at A-9, the April 20 email to Mr. Dolan copying Mr. Ward, the April 22 to 23 chain, the May 4 memo, and the May 8 exchange at B-28, where the whole of my reply was Understood, I'll update it, the warning came ten days after the February 17 transmittal and eleven days after the manual was finalized, and reassignment was raised in the termination meeting itself and passed over without discussion. One line from the May 4 memo answers, in my own contemporaneous words, the line the defense will quote from it: the memo says I was not pursuing further action and then explains itself, the detail is here because I am trying to be transparent, it is not here because I am building a record for somewhere else. The document the defense wants to read as a waiver states its own purpose as a request for help.

The theory this record supports, and the one it does not.

I want to be direct about a sentence I am not going to write, because writing it would lose. The sentence is that Turner fired me for conduct caused by my disability, so firing me for the conduct was firing me for the disability. Hamilton v. Southwestern Bell Telephone Co., 136 F.3d 1047, 1052 (5th Cir. 1998) answers it: the ADA does not insulate outbursts blamed on an impairment, and an employee cannot hide behind the Act to avoid accountability. Any judge in this circuit has read it. So the theory below is narrower, and every piece of it is tied to authority.

Start with availability, because it is the cleanest and it needs none of the contested law. Nall v. BNSF Railway Co., 917 F.3d 335, 348 (5th Cir. 2019) reversed summary judgment because the employer's concerns were not tied to the plaintiff's ability to perform the tasks of his job but to his impairment itself. Judge Costa, specially concurring at 352, wrote that the firing is what it is, because the railroad had all along acknowledged it fired Nall because of concerns about his Parkinson's. That is the Teams presence ground exactly, at B-28. No deliverable was late. What was raised was when I was awake. Sleeping is a major life activity in the statute itself, 42 U.S.C. section 12102(2)(A), the insomnia is charted from June 19, 2024, and Mr. Dolan put his own knowledge of it in writing on March 21. This strand requires nothing about autism, depression or anxiety, no regarded-as prong, and no argument about excusing conduct.

Then the documentation. Burton v. Freescale Semiconductor, Inc., 798 F.3d 222, 231 (5th Cir. 2015) found the employer regarded the plaintiff as disabled because the documentation supporting her termination tied complaints about her conduct to her asserted medical needs. Put Turner's reason documents beside mine. The June 5 email at C-6 and the July 24 letter at D-9 describe collaboration, adherence to unstated direction, and a remark whose context I misread. My February 16 disclosure at A-1 describes difficulty with

ambiguity and indirect communication. Those two documents are describing the same capacities. That overlap is the case.

Then the process, and this is the authority this file has been missing. Cutrera v. Board of Supervisors of Louisiana State University, 429 F.3d 108, 113 (5th Cir. 2005) holds that an employer may not stymie the interactive process by preemptively terminating the employee before an accommodation can be considered or recommended. That is the whole answer to what happened between February 17 and May 19. There was a written request. There was never a process. There was a termination.

On the misconduct carve-out Turner will invoke, the answer is in this circuit and it is recent, and I am naming its outcome in the same breath, because the Fifth Circuit affirmed judgment for the employer there on all three claims. Mueck v. La Grange Acquisitions, L.P., 75 F.4th 469 (5th Cir. 2023), footnote 15, states that section 12114(c) merely allows an employer to discipline for workplace misconduct attributable to the disability of alcoholism, and cites Humphrey v. Memorial Hospitals Ass'n, 239 F.3d 1128, 1139 n.18 (9th Cir. 2001) for the point that the ADA authorizes discharge for disability-caused misconduct in only one category of cases, alcoholism and illegal drug use. It is dicta and it is about alcoholism, and I am flagging both. It is still this circuit saying the carve-out is statutory and confined. Den Hartog v. Wasatch Academy, 129 F.3d 1076, 1086 (10th Cir. 1997) states the principle at length and has never been engaged in the Fifth Circuit either way. It is also an employer win, because the Tenth Circuit affirmed summary judgment for the academy on direct-threat grounds, so it is worth citing for its reasoning at 1085-86 and never for its result.

One structural point that changes how the charge should be drafted. Under 42 U.S.C. section 12201(h), an employer need not provide a reasonable accommodation to a person who is disabled solely under the regarded-as prong. So the two claims cannot share a footing. The failure-to-accommodate claim has to rest on actual impairment, which is the Vytalus record documenting bipolar disorder, ADHD, anxiety, depression and insomnia since June 2024. The discriminatory discharge claim is where autism, depression and anxiety and the regarded-as prong do their work, and where section 12201(h) has no application. No Fifth Circuit case addresses the provision; Robinson v. First State Community Action Agency, 920 F.3d 182, 186 (3d Cir. 2019) and Powers v. USF Holland, Inc., 667 F.3d 815, 823 n.7 (7th Cir. 2011) are the out-of-circuit statements. Powers says it in a footnote that expressly applies pre-ADAAA law, so it is dicta, and both cases came out for the employer. Drafted as one claim on a regarded-as footing, the accommodation count is exposed to a clean motion.

Chapter 21 causation, why the state claim carries its own weight.

I am not going to walk you through your own statute. The point I want in front of you is that section 21.125(a) puts motivating factor in the statutory text itself, with disability expressly listed, which is a sturdier footing than circuit precedent that can be attacked. Quantum Chemical Corp. v. Toennies, 47 S.W.3d 473, 480 (Tex. 2001). Under 21.125(b) same-decision proof limits remedies but not liability, and fees remain available. One citation was lost out of this sentence in an earlier edit, and I am flagging the gap rather than guessing at what filled it. The authority that survived is EEOC v. LHC Group, Inc., 773 F.3d 688, 702-03 (5th Cir. 2014), and it does more work than my earlier note made it sound. The Fifth Circuit held there that the agency had failed to show pretext, and reversed summary judgment anyway, because two decision-maker statements raised a genuine dispute over whether disability was a motivating factor in the

termination. That is the motivating-factor route rather than the pretext route, which is the route section 21.125(a) writes into the statute itself, and it maps onto the Glowacki record at B-1 and Mr. Dolan's own writings at A-6. LHC Group is an ADA case borrowed for the standard and not a Chapter 21 case, and it should be cited that way. A statutory text cannot be litigated away the way circuit precedent can be attacked, which is why the dual filing matters.

Authority that runs against us, named here so nobody finds it first.

Nothing below is deleted from this file or hidden in it. I would rather you meet these on my page than in Turner's brief, and two of them were already in this document being cited for propositions they do not support. Both are corrected in place.

On the request. Taylor v. Principal Financial Group, Inc., 93 F.3d 155, 165 (5th Cir. 1996) is not support for the plain-English rule and this file previously cited it as though it were. Taylor affirmed summary judgment for the employer in a bipolar disorder case, held that asking for reduced objectives and less pressure was too indefinite and ambiguous to be a request, and said that where mental disabilities are involved the initial burden rests primarily on the employee or his health-care provider to identify the limitations and suggest accommodations. Chevron Phillips cites Taylor for that burden, not for plain English; the plain-English sentence is Chevron Phillips's own and is sourced to EEOC guidance. Taylor is the authority I expect Turner to lead with. The answer is A-1: written, on Turner's instrument, naming a limitation, making a request, which is the opposite of the silence Taylor punishes.

Also on the request: Clark v. Champion National Security, Inc., 952 F.3d 570 (5th Cir. 2020) holds that without a request an employer could not possibly fail to engage in an interactive process, and that a retroactive exception to a policy is not an accommodation. One limit worth knowing: the conduct-versus-disability sentence people cite Clark for appears only in a footnote quoting a district court, Green v. Medco Health Solutions of Texas, 947 F. Supp. 2d 712, 729 (N.D. Tex. 2013). Clark itself is an essential-functions case. Windham v. Harris County, 875 F.3d 229, 237-38 (5th Cir. 2017) separates knowledge of a disability from knowledge of the resulting limitation and from knowledge of the necessary accommodation, and requires all three. Patton v. Jacobs Engineering Group, Inc., 874 F.3d 437, 444-45 (5th Cir. 2017) held that saying a stutter and anxiety all go together was too vague. Mueck footnote 13 holds that identifying as, or even being diagnosed with, a condition does not by itself establish substantial limitation. Read together, these are why the January 27 answer at A-5 is not one useful fact among many. It is the element. Turner's knowledge of the conditions is not seriously in doubt. What Windham also requires, and what lives nowhere in this file except in what I said back to her when she asked what I needed, is knowledge of the limitation and knowledge of the accommodation. That answer is the element because it is the only place those two can come from.

On conduct. Hamilton, above, and Seaman v. CSPH, Inc., 179 F.3d 297, 301 (5th Cir. 1999), which holds that an employer's record of leniency diminishes rather than builds the employee's case. That is why D-5 should be framed as evidence of Turner's actual practice on the would-have-fired question rather than as evidence of leniency toward me. Newberry v. East Texas State University, 161 F.3d 276, 280 (5th Cir. 1998) is the case I expect Turner to put against Burton: an employer may fire for conduct even while believing the conduct is symptomatic of a disability, so long as the assessment of disability plays no role in the

decision. And Hayes v. GStek, Inc., No. 25-30392 (5th Cir. May 8, 2026) is binding, published Fifth Circuit precedent decided three months ago, not yet assigned an F.4th citation as of this writing. It affirmed a Rule 12(c) judgment on the pleadings against a plaintiff with autism, major depressive disorder and social anxiety on ADA accommodation, discrimination and retaliation claims. It is distinguishable on essential functions and telework, which is the load-bearing distinction, and its retaliation holding turns on qualified-individual status rather than on the accommodation claim failing: because the plaintiff could not perform the essential function of attendance he was not a qualified individual, so the failed request could not supply the protected activity. It also independently rejected causation on three-month temporal proximity.

On the letter that states no reason. Squyres v. Heico Companies, L.L.C., 782 F.3d 224, 234 & n.6 (5th Cir. 2015) found no case law requiring an employer to state a reason, and its footnote 6 distinguishes Gee v. Principi on the single ground that the plaintiff there asked for a reason and Squyres never did. So the silence in the May 19 letter is worth something only if I asked why and can prove it. B-34 records me asking why the resolution was termination rather than relocation, which is not the same question. My answer to that is in a separate factual memorandum. I am giving you the underlying records with it and not only my account, because a statement written after an analysis that specifies what the statement has to establish invites the argument that it was written to fit. The records do not carry that problem. The January 26 email has its own header date. The call that followed it is in a carrier log. The February 23 text is on a phone. Those dates were fixed months before this document existed and none of them depends on my memory or on anything argued here.

On timing. Strong v. University Healthcare System, L.L.C., 482 F.3d 802, 808 (5th Cir. 2007) affirmatively rejects temporal proximity standing alone as proof of but-for causation, and says it was written to prevent litigants from relying on it. The causation-by-dates paragraph in Section A is a sequence, not a causation argument, and should be read as corroboration for the documentary record rather than as the argument itself. Brown v. CSC Logic, Inc., 82 F.3d 651, 658 (5th Cir. 1996), abrogated on other grounds by Reeves v. Sanderson Plumbing Products, Inc., 530 U.S. 133 (2000), supplies the same-actor inference. The answer to it is that Turner did not know of the conditions I disclosed when it hired me in October. Autism, depression and anxiety were disclosed in January and February. Every case in Brown's string cite is an age case, where the characteristic was known to the employer at hire, which is the premise the inference rests on and which is absent here. On the sleep, I am separating it out rather than blurring it: insomnia was in my chart before Turner hired me and I mentioned short sleep to colleagues, but I never presented it to Turner as a medical condition, and that distinction belongs in this record rather than in Turner's brief.

On the respondent question. Perry v. VHS San Antonio Partners, L.L.C., 990 F.3d 918 (5th Cir. 2021) affirmed summary judgment where the plaintiff satisfied only centralized control of labor relations against three contrary factors, and Lusk v. Foxmeyer Health Corp., 129 F.3d 773, 777-80 (5th Cir. 1997) holds the factors are weighed only as they bear on who made the decision in the matter being litigated, and rejected shared letterhead and a common phone number as sufficient. I have nothing on common ownership. EEOC v. Simbaki, Ltd., 767 F.3d 475, 481-85 (5th Cir. 2014) governs naming: the inquiry is on the face of the charge, and the identity-of-interest exception asks whether the unnamed party's role could be ascertained

by reasonable effort, which as the project's HR Manager I plainly could. My own reading is that naming the member firms costs more than it gains and that the question is really about the JV entity. That call is yours.

On the state claim. Section 21.125 is a package and I want its price in front of you. Subsection (a) gives me motivating factor with disability named in the statute. Subsection (b) gives Turner a statutory same-decision defense: if it proves it would have taken the same action anyway, the court may not award damages, back pay, reinstatement, hiring, promotion or an admission, and what remains is declaratory relief, injunctive relief and fees attributable to the subsection (a) complaint. It is close to, but not the same as, the after-acquired showing: McKennon asks whether Turner would have fired for the later-discovered conduct alone, while 21.125(b) asks whether Turner would have made the same decision anyway on the grounds it has asserted all along, so the two showings have to be run separately. Choosing the state route for the friendlier standard without modeling what subsection (b) does to the number would be a mistake.

Severance and the ERISA question.

Whether the severance program is an ERISA plan turns on an ongoing administrative program, the key determinant, and funding is irrelevant. Gomez v. Ericsson, Inc., 828 F.3d 367, 371-72 (5th Cir. 2016), where the employee lost on the merits and which I am citing for the test alone; Fort Halifax Packing Co. v. Coyne, 482 U.S. 1 (1987). Review runs through Firestone Tire and Rubber Co. v. Bruch, 489 U.S. 101, 115 (1989). Two points matter. First, the Fifth Circuit treats uniform construction as a factor in reviewing an administrator’s interpretation and held that testing uniformity may require evaluating benefit determinations other than the one under scrutiny, beyond the administrative record, so how severance was handled for other terminated employees is fair ground. Wildbur v. ARCO Chemical Co., 974 F.2d 631, 638 (5th Cir. 1992). Second, the anchor is Turner’s own May 19 letter: it put a two-month figure on the separation in a document that states no ground at all, before any reason was ever written down, which is evidence of how Turner valued the separation that day even though the tender was conditioned on a release I never signed, and any later story that recharacterizes the separation to defeat benefits contradicts the company’s contemporaneous document. The plan-document request under 29 U.S.C. section 1024(b)(4) is drafted and held for your sign-off. Both answers are useful to know: no written plan makes the program ad hoc and puts inconsistent treatment in play as a straight comparator story, and a written plan produces the documents and starts the thirty-day clock under 29 U.S.C. section 1132(c)(1), up to 110 dollars a day under 29 C.F.R. section 2575.502c-1 for violations after July 29, 1997. That figure is fixed rather than adjusted annually, because ERISA section 502(c)(1) is a court-awarded rather than agency-assessed penalty and does not appear in 29 C.F.R. section 2575.2 or in the Department's annual adjustment tables, and the Department published no 2026 adjustment in any event. Three instrument facts sharpen this. The May 19 letter names Businessolver as the benefits administrator and promises written advice of my rights under Turner’s various benefit programs within three weeks of my last day, due around June 9; that writing never arrived, which is itself evidence. Section 3(e) of the arbitration agreement makes ERISA plan-benefit claims Covered Claims, so the benefits claim would presumptively travel with the rest, while the document request and the penalty provision are statutory rights that operate now, before any dispute is filed. And one template fact for whenever settlement paperwork returns: the release at D-7 recites the Age Discrimination in Employment Act by name in paragraph 4 and

gives twenty-one days to consider, but contains no seven-day revocation period. I am closing this one rather than leaving it open: I was born in 1994 and I am thirty-two, so I am outside the Older Workers Benefit Protection Act's protected class and the missing revocation period does not give me a claim. It is still worth one line in your file, because a release that recites the ADEA and omits the revocation period is a boilerplate defect, and a defective release is a release Turner should not want to rely on for anything.

Forum, on the agreement's actual text.

Section 7 assigns arbitrability to the court and says it twice. That choice sits squarely inside the controlling rule that courts decide arbitrability unless there is clear and unmistakable evidence the parties sent that question to the arbitrator. First Options of Chicago, Inc. v. Kaplan, 514 U.S. 938, 944 (1995). Here the parties chose the court expressly.

The one argument employers usually run, that adopting the AAA rules delegates arbitrability because those rules let the arbitrator rule on his own jurisdiction, Petrofac, Inc. v. DynMcDermott Petroleum Operations Co., 687 F.3d 671 (5th Cir. 2012), is foreclosed by Section 10, which puts the agreement above the AAA rules wherever they conflict. So the gateway questions are judicial and public. That is where the Section 3 scope question lives: whether claims arising from post-termination access to my personal cloud account fall inside torts arising from employment or termination at all, with Jones v. Halliburton Co., 583 F.3d 228 (5th Cir. 2009), supplying the outer-limits principle. Those readings are now confirmed on the instrument itself, which is in the packet. Section 4(e) reads, verbatim, any claim that is expressly excluded from arbitration by statute or other applicable law that is not preempted by the Federal Arbitration Act. The signature block carries my e-signature alone, October 13, 2025, with no company signature line anywhere on the document, while the May 19 letter promises that Turner will counter-sign the release, so Turner's own paperwork distinguishes the documents it intends to execute mutually; that contrast feeds your July 10 formation argument, and Section 14, making continued employment consent, is the counter it has to meet.

One drafting fact matters for Section 7: the court-decides sentence sits inside the class-waiver section, but its words are general, any issue concerning arbitrability of a particular issue or claim pursuant to this Agreement, stated twice, and even on a narrow reading the First Options default puts the gateway in court because no delegation clause exists anywhere in the agreement. Section 6 adds the honest limit: any claim not fully resolved at the agency is directed into arbitration, so the realistic path for the private claims is arbitration unless the scope, formation, or non-signatory arguments prevail. Section 9 seals the arbitration itself while Section 7 makes every gateway fight a public court proceeding, so those fights decide what the public record contains. Independent of all of it, the EEOC's own enforcement authority is never bound by a private arbitration agreement. EEOC v. Waffle House, Inc., 534 U.S. 279 (2002). The mediation-first condition is a procedural precondition rather than a question of arbitrability, which means the arbitrator rather than the court decides whether it was satisfied, and non-compliance is curable rather than jurisdictional. I am not claiming an unmet precondition can never bite, only that it is not a gateway question and not a merits defense. Howsam v. Dean Witter Reynolds, 537 U.S. 79, 84-85 (2002); BG Group PLC v. Republic of Argentina, 572 U.S. 25, 34-35 (2014). Section 8 places the AAA fees on Turner, which also

moots any cost-based unconscionability fight either direction. Section 7 also contains the company's own written covenant that it will not retaliate against me for challenging the agreement's validity in court.

The joint-employer posture adds a forum fork nobody has used yet. CTS LoneStar and the member firms did not sign my agreement with Turner. The agreement's own words matter here. The Section 3 acknowledgment extends coverage to claims against Turner's parent companies, affiliates, subsidiaries, and agents, and Clayco, Source Building Group, and TW Constructors are none of those things; they are co-venturers, strangers to Turner's corporate family, and the JV entity itself is at most arguable. Under Texas law, whether a claim involving a non-signatory must be arbitrated is a gateway matter for the trial court, not the arbitrator, reviewed de novo, and mere incorporation of the AAA rules does not send that question to an arbitrator. Jody James Farms, JV v. Altman Group, Inc., 547 S.W.3d 624 (Tex. 2018). A non-signatory can reach arbitration only through contract and agency theories such as agency, alter ego, or direct-benefits estoppel, and each proof cuts our way: to ride Turner's agreement the members would have to prove in open court the very control and unity the joint-employer case asserts, and my statutory claims do not arise from the agreement, so direct-benefits estoppel is weak. Naming the JV and the members alongside Turner forces that choice: they litigate publicly as strangers to the agreement, or they claim through it by proving our joint-employer facts for us.

The window that was not there.

Prior working notes carried a contractual 120-day deadline running from early June. The full agreement is now in the packet at D-8 and contains no limitation window of any kind. The only deadline in any instrument in hand was the release's own acceptance window, twenty-one days from May 19, which is the severance deadline my June 2 email at C-5 referenced, and it lapsed with the release unsigned around June 9. Unless a source document surfaces, the early October date should be disregarded, and every live deadline is statutory. If a limitation clause ever does surface, the Texas rule is banked: provisions that inhibit effective vindication of a statutory claim in the arbitral forum are substantively unconscionable and void, and are severed while the remainder is enforced. In re Poly-America, L.P., 262 S.W.3d 337 (Tex. 2008). One structural note on the mediation condition: the agreement routes dispute reports and mediation requests in writing to my HR manager or HR director, which on this record means the chain that includes the people at issue, a fact worth one line in any brief about how the process was designed to work and for whom. The one-sided pattern deserves its line too: Section 4(a) reserves court access for the company's own injunction claims, and the unsigned release's remedies paragraph at D-7 would have let Turner recover all but one day's pay plus its own attorney fees on breach of paragraphs 2, 4, 5, 8, 9, 10 or 11.

Clocks, corrected and in order.

The controlling computation runs from the earliest arguable act, not just May 19, and I want the worst case in front of you rather than the comfortable one. If the February 27 warning is charged as its own discrete act, its 180-day state window closes around August 26, which is twenty days out. If anything in early February is charged as an act, and the February 9 reset at C-1 is the earliest 2026 conduct here that could arguably be charged, the window on it closed or closes around August 8. Older items exist in the index, B-15 on February 5, D-5 in December 2025, D-8 in October 2025, and A-13 back to June 2024, but none of those is an adverse act by Turner, so I am not counting them. I am not asserting February 9 is a

discrete discriminatory act; I do not think it is, because it is my own message rather than Turner's conduct. But it is the earliest 2026 date I could see anyone trying to charge, and you should be the one to rule it in or out rather than find it later.

The earliest April act indexed here is the April 9 Overman thread at C-2, and 180 days from April 9 is October 6, which is the safe outer bound. The April 20 email at C-3 would give October 17, and April 24 would give October 21. To be precise about the method, because I had this backwards in an earlier draft: discrete acts each carry their own window, so an earlier act does not cap a later one and October 6 is not a ceiling on the May 19 claim. What October 6 is, is the date after which the April conduct stops being independently chargeable. The earliest closing window is the one that sets urgency, and that is what these dates are for. May 19 alone runs to November 15. The federal charge window is 300 days, and it changes the urgency picture, so I am stating it plainly. Texas is a deferral jurisdiction, so every state date above has a federal counterpart roughly one hundred and twenty days later. February 27 runs to about December 24, 2026 federally, not August 26. May 19 runs to about March 15, 2027. Under 40 Texas Administrative Code section 819.71 a charge filed with the EEOC and deferred to the Civil Rights Division is timed from the EEOC receipt date, so one filing preserves both. The August 26 date is a state fuse on a verbal warning that was never documented and produced no tangible consequence, which is the thinnest act in this file. The reasons to file now are that filing triggers 29 C.F.R. section 1602.14 preservation across all relevant personnel records, and that it forces Turner's fourth written statement of its reasons, which I get and Turner never sees my answer to. Those are better reasons than the date. Filing now protects everything from the filing date backward through the open windows. It does not revive anything already outside one, and on the earliest reading February 9 is at the edge this week. That is the reason the charge should not wait.

After the charge, the state suit window is 60 days from the right-to-sue letter with a two-year outer limit, and the federal window is 90 days. The payday item, 4,148.95 in zeroed assignment pay, runs 180 days from the due date under Texas Labor Code section 61.051(c), not section 61.018, which is the substantive deduction provision. Two things about that deadline. The statute says on its face that it is a matter of jurisdiction, which means it is not subject to equitable tolling, so holding the claim unfiled is riskier than I first wrote. And wages were due on the sixth day after termination under section 61.014, which puts the deadline around November 21, 2026. The penalty is capped at the lesser of the wages or 1,000 dollars under section 61.053, so this is a small claim in money and a large one in evidence: it is the cleanest proof I have that Turner treated the Living Allowance as wages when it prorated the travel incentive and not the allowance. It stays preserved rather than filed pending your answer on the res judicata question, and I am flagging that the clock is jurisdictional. No instrument in hand imposes any deadline of its own now that the release’s twenty-one day window has lapsed unsigned.

On COBRA, paragraph 1 of the release states coverage ended May 31, 2026, and there is still no election notice to confirm. This is a claim with a running meter and not just an observation, so I am stating it as one. Under 29 U.S.C. section 1166(a)(2) and (c) and 29 C.F.R. section 2590.606-4(b), the plan administrator owed me an election notice within forty-four days of the qualifying event if Turner is its own plan administrator, which put the deadline at about July 2, 2026, and within fourteen days of the

administrator’s receipt of Turner’s notice if Businessolver holds that role. Which of those it is, is the first thing the plan documents will answer. Nothing came. Under 29 U.S.C. section 1165(a)(1)(C)(ii) the sixty-day election period runs from the later of loss of coverage or the date of notice, so with no notice the period never started and cannot have closed. Exposure is up to 110 dollars a day under 29 U.S.C. section 1132(c)(1)(A) as adjusted by 29 C.F.R. section 2575.502c-1, in the court's discretion, running from the failure. There is also a 100 dollar per day excise tax under 26 U.S.C. section 4980B(b)(1), but that is payable to the Treasury rather than to me and it abates if Turner corrects within thirty days, so I count it as leverage and not as money. The money is the medical cost. A-13 records a July 22 visit note stating a medication will be too expensive and that I am self pay, which is a treating physician tying the loss of coverage to altered care, and that figure is uncapped and provable. One caution: a Businessolver mailing log would end this, so ask for it early. I have searched my mail and my files and no notice from Businessolver or anyone else exists, so the 60-day election clock has no start date I can point to. The May 19 letter names Businessolver and promises written notice of my benefit rights within three weeks of my last day, due around June 9. That is one more written promise in the May 19 letter that was not kept.

Flagged, not relied on.

Three items are flagged rather than asserted: the deadline arithmetic above; whether the CTS LoneStar entity counts as a Turner affiliate under the Section 3 acknowledgment, which shapes the non-signatory fork; and whether the 120-day figure in prior notes has any source document at all, since neither instrument in the packet contains it.

How to use this packet

Exhibits are numbered so each file matches this index when it comes over, and everything I hold uploads on request. Section A answers the firm's documentation request directly. Sections B through D hold the documents behind each numbered point in my August letter. Section E maps the phone exports, held ready and uploaded on request. Section F lists witnesses and what each supports. Section G lists the records that exist only in Turner’s systems. Section H holds the research and authorities behind all of it. Where a row says I hold the native, I can produce that file with headers and metadata intact within a day of asking. Where a row says screenshot or capture, what I hold is an image and the native is in Section G. The February 9 item at B-2 is the one capture that also has its own mail headers. For the mailbox items in Section G I cannot, and each of those rows says so where it sits.

Garrett Baxley